

## **LAW – 528: RIGHT TO INFORMATION (PAPER – VI) 3<sup>rd</sup> SEMESTER (SYLLABUS)**

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## **DETAILED NOTES AND EXPLANATION**

### **UNIT – I**

#### **RTI – Jurisprudential Aspects: Concepts of Freedom, Justice and Legal Rights**

##### **1. Introduction**

The **Right to Information (RTI)** is one of the most progressive developments in modern administrative law. It reflects the transformation of governance from secrecy to transparency. Jurisprudentially, it is rooted in the **concepts of Freedom, Justice, and Legal Rights**, which together form the moral and legal foundation of this right. RTI enables citizens to access information held by public authorities, ensuring **transparency, accountability, and participation**—essential features of a democratic government.

##### **2. Jurisprudential Background**

**Jurisprudence** means the *philosophy or science of law*. The jurisprudential foundation of the Right to Information lies in the idea that **knowledge is power** and that the citizen's access to information is necessary for freedom, justice, and equality.

RTI is not merely a statutory right; it is the **practical embodiment of democratic jurisprudence**, where the government is accountable to the governed.

##### **3. Concept of Freedom and RTI**

### (a) Meaning of Freedom

Freedom denotes the capacity of individuals to think, express, and act without undue restriction. In legal philosophy, **freedom of speech and expression** is considered the heart of democracy.

### (b) Freedom and Right to Know

The **Right to Information** is an extension of the **freedom of speech and expression** guaranteed under **Article 19(1)(a)** of the Indian Constitution. A citizen cannot form or express opinions effectively without access to relevant information. Therefore, the “Right to Know” is implicitly included in the “Right to Freedom of Speech and Expression”.

### (c) Judicial Recognition

1. **State of U.P. v. Raj Narain (1975) AIR 865 (SC)** – The Supreme Court declared that “the people of this country have a right to know every public act, everything that is done in a public way by their public functionaries.”  
This case laid the foundation for the concept of *open government*.
2. **S.P. Gupta v. Union of India (1982) AIR 149 (SC)** – Known as the *Judges’ Transfer Case*, it emphasized that “**openness in government is the new democratic culture.**”
3. **Indian Express Newspapers v. Union of India (1985)** – The Court held that freedom of the press includes the **right to information**, as it is essential for meaningful expression.

### (d) Conceptual Link

Freedom without information is hollow. The jurisprudence of freedom, therefore, naturally extends to the citizen’s right to know the functioning of government authorities.

## 4. Concept of Justice and RTI

### (a) Meaning of Justice

Justice is the supreme value of law—representing fairness, equality, and moral rightness. According to **John Rawls**, justice means *fairness*; every person should have an equal opportunity to participate in decisions affecting their lives.

### (b) Information as a Tool of Justice

Justice cannot be achieved in the absence of truth and transparency. The RTI ensures **procedural justice** by allowing citizens to know how decisions are made, and **social justice** by ensuring fair access to benefits and opportunities provided by the State.

### (c) Judicial View

In **People’s Union for Civil Liberties (PUCL) v. Union of India (2003)**, the Supreme Court observed that the **right to information is a facet of the right to life and liberty under Article 21**, as transparency is vital for fair governance.

Through information, the citizen becomes an active participant in the justice process.

### (d) Practical Significance

- Access to government records exposes corruption and misuse of power.
- Information about public funds and welfare schemes ensures fairness in distribution.
- RTI acts as a safeguard against arbitrary administration.

Thus, justice and RTI are mutually reinforcing; transparency in governance leads to justice in society.

## 5. Concept of Legal Rights and RTI

### (a) Meaning of Legal Right

A **legal right** is an interest recognized and protected by law, violation of which entitles the individual to a legal remedy. It imposes a corresponding duty on others (in this case, the State) to respect and protect that right.

### (b) Transformation of RTI into a Legal Right

Initially, the *right to know* was recognized as a **fundamental right** under Article 19(1)(a), developed through judicial interpretation.

Later, the **Right to Information Act, 2005** converted this constitutional right into a **statutory and enforceable legal right**.

Now, every citizen has a legally protected entitlement to seek information from public authorities.

### (c) Case Reference

**Union of India v. Association for Democratic Reforms (2002)** – The Supreme Court held that the voter's right to know about the background of electoral candidates is a part of freedom of speech and expression. This judgment clearly recognized RTI as a **legal and democratic right** of citizens.

### (d) Nature of RTI as a Legal Right

1. **Fundamental in nature** – Derives from Article 19(1)(a).
2. **Statutory in form** – Expressly granted by the RTI Act, 2005.
3. **Enforceable** – Citizens can approach Information Commissions or courts for redress if information is denied.

## 6. Inter-relationship of Freedom, Justice, and Legal Rights

These three concepts form the jurisprudential foundation of RTI:

| Concept             | Jurisprudential Role                      | Connection with RTI                                          |
|---------------------|-------------------------------------------|--------------------------------------------------------------|
| <b>Freedom</b>      | Ensures liberty of thought and expression | RTI allows citizens to freely access and express information |
| <b>Justice</b>      | Guarantees fairness and equality          | RTI promotes transparency and prevents injustice             |
| <b>Legal Rights</b> | Provides enforceability of entitlements   | RTI Act makes the right to know legally enforceable          |

Together, they uphold the **democratic philosophy of transparency, accountability, and participation** in governance.

## 7. Conclusion

The Right to Information is a product of the evolving legal and moral conscience of society. It is the realization of **freedom through knowledge, justice through transparency, and rights through enforceability**.

The RTI Act, 2005, thus represents a shift from a culture of secrecy to a culture of openness, empowering every citizen to become a watchdog of democracy. It transforms governance from **power-centric administration** to **citizen-centric accountability**, fulfilling the constitutional ideals of liberty, equality, and justice.

### Right to Information – A General Overview

*(From Stone Age to the Age of Information)*

## 1. Introduction

The **Right to Information (RTI)** is not a sudden creation of law; it is the **result of a long historical evolution** of human society — from ignorance and secrecy to knowledge and openness.

In every stage of civilization, information has been a form of **power**. The control of information meant control over people. RTI represents the *democratization of that power*, making the State answerable to its citizens.

Hence, the journey of RTI can be understood as the movement **from the “Stone Age” to the “Age of Information.”**

## 2. The Stone Age: Era of Ignorance and Secrecy

In the early stages of human civilization, societies were based on **hierarchy, fear, and obedience**.

- The rulers or chiefs possessed **exclusive knowledge** and kept people uninformed.
- There was **no concept of public participation or accountability**.
- Information was treated as *private property of the powerful*.

Even in the early monarchies and feudal systems, secrecy was considered essential for maintaining authority. The principle followed was:

“The King knows everything; the people should know nothing.”

This was the **age of secrecy and control**, where ignorance of the masses ensured the security of rulers.

## 3. The Medieval and Colonial Periods: Control over Information

During the medieval period and later under colonial rule, **secrecy became institutionalized**.

- The **British administration in India** functioned on the maxim: *“Official secrecy is the key to good administration.”*
- The **Official Secrets Act, 1923** was enacted to **restrict access to government information**, especially in matters of state security and administration.
- Public offices were closed to citizens; even basic governmental records were confidential.

This culture of secrecy continued for decades after independence, delaying the emergence of a transparent system.

## 4. The Age of Enlightenment and Birth of the Concept of “Right to Know”

The **17th and 18th centuries** witnessed intellectual movements in Europe — the **Age of Enlightenment**, emphasizing **reason, liberty, and the right to knowledge**.

Thinkers like **John Locke, Rousseau, and Montesquieu** argued that:

- Knowledge and information are essential for **freedom of thought**.
- A government must function with the **consent and awareness of the governed**.

This led to the development of the idea that **citizens have the right to know** how they are governed — a philosophical foundation for the modern RTI.

## 5. The Modern Democratic Period: Information as a Human Right

With the rise of democratic governments in the 19th and 20th centuries, the emphasis shifted from **secrecy to transparency**.

- Democracy is based on **public accountability**, and accountability requires information.

- A citizen cannot meaningfully exercise his right to vote, criticize, or participate in governance unless he has access to accurate information.

In this period, **information became a symbol of empowerment** — the tool through which citizens could demand justice and equality.

## 6. India's Transition: From Secrecy to Transparency

After independence, India inherited the **colonial administrative mindset of secrecy**. The **Official Secrets Act, 1923** continued, and access to government records was strictly limited.

However, growing public awareness and democratic movements gradually changed this attitude.

- In the **1970s**, social movements like those led by **Mazdoor Kisan Shakti Sangathan (MKSS)** in Rajasthan demanded "*Hamara Paisa, Hamara Hisab*" (Our money, our accounts).
- Activists insisted that people had the right to see government records related to rural development and public spending.
- These movements laid the foundation for **people's right to know** as a part of democratic accountability.

The **Supreme Court** also began interpreting **Article 19(1)(a)** (Freedom of Speech and Expression) as including the **Right to Know**. Landmark cases such as *Raj Narain (1975)* and *S.P. Gupta (1982)* strengthened this evolution.

Finally, the **Right to Information Act, 2005** was enacted, marking the end of a long journey from **official secrecy to public transparency**.

## 7. The Age of Information: Knowledge as a Democratic Power

The present era is rightly called the **Age of Information** or **Knowledge Society**.

- Information has become a **public resource** — not a privilege of the elite.
- The Internet, media, and digital records have transformed governance into a system where **data is the foundation of democracy**.
- RTI ensures that every citizen has the **right to access information, scrutinize government actions, and participate in decision-making**.

Today, RTI represents the **maturity of democracy** — it empowers people to question authority and to make the State truly *by the people, of the people, and for the people*.

## 8. Conclusion

The evolution of the Right to Information from the **Stone Age of ignorance to the modern Age of Information** reflects the progress of human civilization itself.

It signifies a shift from **monarchical secrecy to democratic transparency**, from **subjects to citizens**, and from **obedience to empowerment**.

Through the RTI Act, 2005, India has joined the global movement that recognizes information as the **lifeblood of democracy** and an essential element of **good governance and social justice**.

## Right to Information and International Covenants

### 1. Introduction

The **Right to Information (RTI)** is not only a national concept but also a **globally recognized human right**.

It is considered essential for the realization of **freedom of speech and expression, good governance, and human dignity**.

Various **international covenants, declarations, and conventions** have recognized the right to seek and receive information as a part of **fundamental human rights**.

Hence, the Indian RTI Act, 2005, is consistent with these international commitments and reflects India's obligations as a member of the international community.

## 2. The Universal Declaration of Human Rights (UDHR), 1948

The **UDHR**, adopted by the United Nations General Assembly on **10 December 1948**, laid the foundation for the recognition of RTI at the international level.

- **Article 19 of the UDHR** states:

"Everyone has the right to freedom of opinion and expression; this right includes the freedom to hold opinions without interference and to seek, receive and impart information and ideas through any media and regardless of frontiers."

### Explanation:

This article explicitly recognizes that the right to **seek and receive information** is a component of **freedom of expression**.

Thus, RTI is a **universal human right** derived from the UDHR.

## 3. The International Covenant on Civil and Political Rights (ICCPR), 1966

India ratified the **ICCPR** in **1979**, making its principles binding in domestic law.

- **Article 19(2)** of ICCPR provides:

"Everyone shall have the right to freedom of expression; this right shall include freedom to seek, receive and impart information and ideas of all kinds."

### Significance:

- This provision legally strengthens the **right to seek and receive information**.
- By ratifying the ICCPR, India undertook an international obligation to **ensure transparency and access to information** in its governance.
- It forms the basis for judicial interpretation of **Article 19(1)(a)** of the Indian Constitution, linking RTI with freedom of speech.

## 4. The International Covenant on Economic, Social and Cultural Rights (ICESCR), 1966

While ICCPR focuses on civil and political rights, **ICESCR** emphasizes social and economic development.

RTI plays a crucial role in achieving these rights because **access to information** is necessary to realize **education, health, and welfare benefits**.

- The **UN Committee on Economic, Social and Cultural Rights** has recognized that **transparency and access to information** are essential for the fulfillment of socio-economic rights.

## 5. The UN Convention Against Corruption (UNCAC), 2003

The **UNCAC**, adopted in 2003, stresses the importance of **transparency in public administration** as a key element to prevent corruption.

- **Article 10 of UNCAC** provides that:

"Each State Party shall take measures to enhance transparency in its public administration, including with regard to its organization, functioning and decision-making, and shall ensure that the public has effective access to information."

## Relevance:

- India ratified this Convention in 2011.
- The RTI Act, 2005, is consistent with this commitment, as it helps expose corruption and promotes transparency in government functioning.

## 6. The UN Human Rights Council Resolutions

- The **UN Human Rights Council** has repeatedly reaffirmed that **the right to access information held by public authorities** is a fundamental part of the right to freedom of expression.
- Resolution 59/1 (2005) and 12/16 (2009) recognize **transparency and access to information** as key elements of democratic governance and the rule of law.

## 7. Regional and Other International Instruments

Apart from global covenants, several **regional human rights instruments** also affirm RTI as a basic human right:

1. **European Convention on Human Rights (ECHR), 1950** – Interpreted by the European Court of Human Rights to include the right to access information.
2. **American Convention on Human Rights (ACHR), 1969** – Article 13 explicitly includes the right to seek and receive information.
3. **African Charter on Human and Peoples' Rights (1981)** – Article 9 guarantees the right to receive information and express opinions freely.

These instruments collectively demonstrate the **universal acceptance of RTI** as a fundamental element of human freedom and democratic accountability.

## 8. Influence of International Covenants on India

- The Indian judiciary has consistently drawn inspiration from international covenants while interpreting fundamental rights.
- In **Vishaka v. State of Rajasthan (1997)**, the Supreme Court held that **international conventions consistent with fundamental rights** can be used to interpret constitutional provisions.
- Similarly, **Article 19(1)(a)** of the Indian Constitution has been interpreted in light of **Article 19 of UDHR** and **Article 19 of ICCPR**, giving RTI a **constitutional and global legitimacy**.

Therefore, India's RTI Act, 2005, is in **harmony with international law**, fulfilling its obligation to uphold transparency and good governance.

## 9. Conclusion

The Right to Information is now recognized globally as an essential human right and a cornerstone of democratic governance.

International covenants such as the **UDHR (1948)**, **ICCPR (1966)**, and **UNCAC (2003)** have declared that **freedom to seek and receive information** is vital for liberty, equality, and justice.

India's **RTI Act, 2005** is not merely a domestic statute but part of an **international movement toward transparency**, ensuring that citizens everywhere can hold their governments accountable and participate meaningfully in public life.

## Right to Information in Other Countries – UK, USA, European Union and Others

### 1. Introduction

The **Right to Information (RTI)** or **Freedom of Information (FOI)** has evolved globally as an integral part of **democratic governance**.

Different countries have enacted laws to ensure **public access to government information**, recognizing that transparency is the best safeguard against corruption and misuse of power.

India's RTI Act, 2005, was influenced by the experiences of several foreign jurisdictions — particularly the **USA, UK, and European nations** — where such laws existed much earlier.

## **2. Right to Information in the United States of America (USA)**

### **(a) Historical Background**

The USA was one of the first countries to legally recognize **freedom of information** as a citizen's right.

The **Freedom of Information Act (FOIA), 1966**, is the cornerstone of transparency in American public life.

### **(b) Key Features of the U.S. Freedom of Information Act, 1966**

1. **Right of Access** – Any person (citizen or non-citizen) can request information from federal agencies.
2. **Obligation of Disclosure** – Agencies must make records available unless exempted by law.
3. **Exemptions** – Certain categories of information can be withheld, e.g.:
  - National security and defense
  - Trade secrets and commercial data
  - Internal agency communications
  - Personal privacy matters
4. **Appeal Mechanism** – Denial of information can be challenged before federal courts.
5. **Amendments** – The Act was strengthened by later amendments (1974, 1996, 2007, 2016) to ensure timely responses and use of electronic records.

### **(c) Significance**

The U.S. FOIA established the principle that **“Government information belongs to the people”**.

It inspired several other democracies, including India, to adopt similar transparency frameworks.

## **3. Right to Information in the United Kingdom (UK)**

### **(a) Background**

Historically, British administration followed a **tradition of secrecy** under the **Official Secrets Act, 1911**, which influenced colonial India as well.

However, public pressure and parliamentary reforms led to the adoption of the **Freedom of Information Act, 2000**.

### **(b) Key Features of the UK FOI Act, 2000**

1. **Right to Access** – Every person has the right to obtain information held by public authorities, including government departments, local bodies, police, and NHS authorities.
2. **Public Authorities Covered** – More than 100,000 public institutions are included.
3. **Exemptions** – Similar to India: national security, defense, international relations, personal data, and law enforcement.



4. **Information Commissioner** – An independent **Information Commissioner's Office (ICO)** supervises and enforces the Act.
5. **Proactive Disclosure** – Public authorities must publish key information voluntarily through publication schemes.
6. **Time Limit** – Information must be provided within **20 working days**.

### **(c) Significance**

The UK Act reflects the balance between **transparency and security**.

It also served as a **model for India's RTI Act, 2005**, especially regarding the structure of **Central and State Information Commissions**.

## **4. Right to Information in the European Union (EU)**

### **(a) Legal Framework**

The European Union recognizes **access to information** as a **fundamental right** under the **Charter of Fundamental Rights of the EU (2000)**.

- **Article 42** of the Charter provides:

"Any citizen of the Union, and any natural or legal person residing or having their registered office in a Member State, has a right of access to documents of the institutions, bodies, offices and agencies of the Union."

### **(b) Regulation (EC) No. 1049/2001**

This regulation governs public access to European Parliament, Council, and Commission documents.

It ensures that citizens can:

- Access official records, policies, and decisions.
- Seek review or appeal if access is denied.
- Obtain documents electronically in most cases.

### **(c) European Court of Human Rights (ECHR)**

Through judicial interpretation of **Article 10 of the European Convention on Human Rights**, the ECHR has held that the **freedom to receive information** is an essential element of freedom of expression.

### **(d) Significance**

The European model integrates RTI within the **human rights framework**, treating it as part of the **right to democratic participation** and **good administration**.

## **5. Right to Information in Sweden and Nordic Countries**

Sweden is regarded as the **birthplace of freedom of information**.

### **(a) Historical Development**

- The **Freedom of the Press Act, 1766**, adopted in Sweden, is the **world's oldest RTI law**.
- It recognized the **public's right to access official documents**, promoting openness and accountability centuries before others.

### **(b) Influence**

The Nordic model (Sweden, Finland, Norway, Denmark) emphasizes:

- Open government meetings
  - Access to administrative documents
  - Judicial enforcement of transparency
- Their systems inspired global democratic movements for information access.

## 6. Right to Information in Australia and New Zealand

### (a) Australia\*\*

- The **Freedom of Information Act, 1982**, grants citizens the right to access documents held by Commonwealth agencies and ministers.
- Each state and territory has its own FOI legislation.
- The **Office of the Australian Information Commissioner (OAIC)** oversees implementation.

### (b) New Zealand\*\*

- The **Official Information Act, 1982**, emphasizes that information should be made available unless there is a *good reason* to withhold it.
- It promotes openness as the rule and secrecy as the exception.

## 7. Comparative Analysis and Influence on India

| Country/Region Act/Year |                                                             | Key Features / Influence on India                                                     |
|-------------------------|-------------------------------------------------------------|---------------------------------------------------------------------------------------|
| USA                     | Freedom of Information Act, 1966                            | Established judicially enforceable citizen right to information                       |
| UK                      | Freedom of Information Act, 2000                            | Influenced structure of Indian RTI – Information Commissions, exemptions, and appeals |
| Sweden                  | Freedom of the Press Act, 1766                              | Oldest model of open government                                                       |
| EU                      | Charter of Fundamental Rights (2000) & Regulation 1049/2001 | Treated RTI as a human right                                                          |
| Australia & NZ          | FOI Acts, 1982                                              | Promoted proactive disclosure and digital access                                      |

India adopted a **blended approach**, taking cues from all these systems while adapting them to its constitutional framework and socio-political needs.

## 8. Conclusion

The global experience clearly demonstrates that **transparency and openness are universal principles of democracy**.

From Sweden's pioneering law of 1766 to America's FOIA of 1966 and the UK's 2000 Act, nations have recognized that **citizens have a right to know** how they are governed.

The Indian **Right to Information Act, 2005**, stands in this global tradition, combining democratic values with constitutional guarantees to create a **powerful instrument of good governance and public accountability**.

## Constitutional Provisions Relating to Right to Information

### 1. Introduction

The **Right to Information (RTI)**, though codified through the **RTI Act, 2005**, is not a newly created right. It is **a part of the fundamental rights guaranteed by the Constitution of India**, particularly under **Article 19(1)(a)** – *Freedom of Speech and Expression* – and **Article 21** – *Right to Life and Personal Liberty*.

The judiciary has played a **pivotal role** in interpreting these constitutional provisions to recognize “**Right to Know**” as an essential component of **democratic governance**.

## 2. Constitutional Foundation of RTI

### (a) Article 19(1)(a): Freedom of Speech and Expression

- Article 19(1)(a) of the Constitution guarantees:

“All citizens shall have the right to freedom of speech and expression.”

- The Supreme Court of India has consistently held that **freedom of speech and expression includes the right to receive and impart information**.
- Without access to information, **freedom of speech** becomes meaningless, because citizens cannot form or express informed opinions.

#### Judicial Interpretation:

- State of U.P. v. Raj Narain (1975)**

The Supreme Court held that the **Right to Know** is derived from Article 19(1)(a).

The Court observed:

“In a government of responsibility like ours, where all agents of the public must be responsible for their conduct, there can be but few secrets. The people of this country have a right to know every public act.”

- Bennett Coleman & Co. v. Union of India (1973)**

The Court ruled that **freedom of the press** includes the **right to information** as essential for disseminating knowledge and public awareness.

- Indian Express Newspapers v. Union of India (1985)**

It was reaffirmed that **freedom of the press** means the right to publish and circulate information and opinions freely.

#### Conclusion:

Article 19(1)(a) forms the **constitutional backbone** of the RTI, ensuring that citizens have the right to access information necessary to participate meaningfully in democracy.

### (b) Article 21: Right to Life and Personal Liberty

- Article 21 states:

“No person shall be deprived of his life or personal liberty except according to procedure established by law.”

- The Supreme Court has expanded the scope of Article 21 to include the **right to live with human dignity**, which also encompasses the **right to know information** affecting one’s life, liberty, and environment.

#### Judicial Precedents:

- People’s Union for Civil Liberties (PUCL) v. Union of India (2003)**

The Court held that **the right to know** about the candidates standing for election is a fundamental right of voters under Article 19(1)(a) and Article 21.

This case led to the **mandatory disclosure of criminal, financial, and educational backgrounds** of electoral candidates.

- **Reliance Petrochemicals Ltd. v. Indian Express (1988)**

The Court recognized the **Right to Know** as a fundamental right flowing from Article 21.

It stated that people have the right to be informed about matters affecting their lives, health, and environment.

## ■ Conclusion:

Article 21 strengthens RTI by connecting it with the **right to live with dignity and safety**, implying that secrecy in public affairs cannot override human rights.

### (c) Preamble of the Constitution

The **Preamble** declares India to be a **Democratic Republic** ensuring **justice, liberty, equality, and fraternity**.

Transparency and accountability are the **lifeblood of democracy**, and the **RTI embodies these ideals**.

The Preamble's emphasis on **liberty of thought and expression** reinforces the constitutional basis of RTI.

### (d) Article 32 and 226: Judicial Remedies

- These Articles empower the **Supreme Court and High Courts** to enforce **fundamental rights**, including the right to information.
- Citizens can file **writ petitions** when government authorities deny information unjustly.

## ■ Example:

Public interest litigations (PILs) filed under Article 32 or 226 have been instrumental in expanding RTI before the enactment of the 2005 Act.

## 3. Directive Principles and Fundamental Duties Supporting RTI

### (a) Article 38 & 39 – Directive Principles of State Policy (DPSPs)

These Articles direct the State to promote **welfare, transparency, and justice**.

The **RTI Act** operationalizes these ideals by ensuring openness in administration.

### (b) Article 51A(b) – Fundamental Duty

It is the duty of every citizen “to cherish and follow the noble ideals which inspired our national struggle for freedom.”

The freedom movement emphasized **truth, accountability, and openness**, which the RTI now translates into law.

## 4. Evolution through Judicial Interpretation (Pre-RTI Act Period)

Before the enactment of the **RTI Act, 2005**, courts recognized RTI as a **derivative fundamental right** through various landmark judgments:

| Case Name                                                   | Year | Principle Laid Down                                                               |
|-------------------------------------------------------------|------|-----------------------------------------------------------------------------------|
| <b>Bennett Coleman &amp; Co. v. UOI</b>                     | 1973 | Freedom of press includes right to information.                                   |
| <b>State of U.P. v. Raj Narain</b>                          | 1975 | People have the right to know about public acts of government.                    |
| <b>S.P. Gupta v. Union of India (Judges' Transfer Case)</b> | 1982 | Right to know is part of Article 19(1)(a); government secrecy cannot be absolute. |
| <b>Reliance Petrochemicals Ltd. v. Indian Express</b>       | 1988 | Right to know is necessary for life and liberty under Article 21.                 |
| <b>PUCL v. Union of India</b>                               | 2003 | Citizens have a right to know about electoral candidates.                         |

These decisions laid the **judicial groundwork** for the **Right to Information Act, 2005**, which gave statutory shape to the constitutional principles.

## 5. Relationship Between RTI and Fundamental Rights

- The RTI is **not a new right**, but a **means to enforce existing fundamental rights**.
- It is a **derivative right**, emerging from:
  - **Article 19(1)(a)** – Freedom of expression and speech.
  - **Article 21** – Right to live with dignity and safety.
- It empowers citizens to **question, inspect, and participate** in governance.
- It ensures **accountability and transparency**, thereby strengthening **democratic control over the executive**.

## 6. Conclusion

The **Right to Information** has deep **constitutional roots** in India.

It flows from the **fundamental rights** guaranteed under Articles **19(1)(a)** and **21**, reinforced by the **Preamble, Directive Principles**, and **judicial interpretations**.

The Constitution thus provides the **moral and legal foundation** for the RTI Act, 2005, ensuring that the government remains **answerable to the people**, in keeping with the spirit of “**open democracy**.”

## Significance of RTI in Democracy and Good Governance

### 1. Introduction

The **Right to Information (RTI)** is not merely a statutory right — it is a **democratic necessity**.

In a **government of the people, by the people, and for the people**, transparency is the foundation on which democracy stands.

The **RTI Act, 2005** transforms the **traditional culture of secrecy** into one of **openness and accountability**, empowering citizens to participate actively in public affairs.

Thus, RTI strengthens **democracy, good governance, and the rule of law**.

### 2. RTI and Democracy

#### (a) Essence of Democracy

Democracy functions on **public participation** and **informed consent**.

For citizens to make responsible choices — in elections, policymaking, or civic engagement — they must **have access to accurate information**.

#### (b) RTI as an Instrument of Empowerment

- RTI empowers citizens to question, audit, and evaluate government functioning.
- It helps bridge the gap between **the ruler and the ruled**.
- Transparency ensures that the **sovereign power of citizens** is respected in practice.

#### Judicial Support:

- **S.P. Gupta v. Union of India (1982)**  
The Supreme Court declared:

“The concept of an open government is the direct emanation from the right to know which seems to be implicit in the right of free speech and expression.”

- **Union of India v. Association for Democratic Reforms (2002)**

The Court recognized citizens’ right to know about political candidates as an integral part of **free and fair elections**.

 **Result:**

RTI ensures that democracy is **informed and participatory**, not merely procedural.

### **3. RTI and Good Governance**

#### **(a) Meaning of Good Governance**

Good governance refers to the **efficient, transparent, accountable, and participatory administration** of public affairs.

The United Nations defines it through key elements such as:

- **Transparency**
- **Accountability**
- **Responsiveness**
- **Rule of Law**
- **Participation**
- **Equity and Inclusiveness**

#### **(b) How RTI Promotes Good Governance**

##### **Aspect of Good Governance Contribution of RTI**

|                       |                                                           |
|-----------------------|-----------------------------------------------------------|
| <b>Transparency</b>   | Makes government records open to public scrutiny.         |
| <b>Accountability</b> | Public officials become answerable for their actions.     |
| <b>Participation</b>  | Enables citizens to engage in decision-making.            |
| <b>Efficiency</b>     | Reduces corruption, delays, and misuse of power.          |
| <b>Rule of Law</b>    | Ensures that administration operates within legal limits. |
| <b>Equity</b>         | Guarantees equal access to information for all citizens.  |

 **Example:**

Through RTI applications, citizens have exposed irregularities in **PDS distribution, MGNREGA, local development funds, and police procedures**, leading to administrative reforms and disciplinary actions.

### **4. RTI as a Tool Against Corruption**

Corruption thrives in secrecy.

By allowing citizens to inspect records, ask for copies, and question decisions, the RTI Act **acts as a deterrent** against corrupt practices.

#### **(a) Anti-Corruption Impact**

- Detects misuse of public funds and favoritism.

- Helps whistleblowers expose wrongdoing.
- Creates a **culture of transparency** within public institutions.

## (b) Example Cases

- In **Adarsh Housing Scam** and **2G Spectrum Case**, RTI requests were instrumental in bringing facts to light.
- Numerous local-level RTI applications have unearthed **ghost beneficiaries** in welfare schemes.

## ■ Conclusion:

RTI is the most **cost-effective anti-corruption law** in India.

## 5. RTI and Administrative Reforms

- Promotes **citizen-centric administration**.
- Improves **record management systems** in government offices.
- Encourages **digital governance** through proactive online disclosure.
- Enhances **trust between government and public** by reducing suspicion.

## ■ Example:

Many states have introduced **e-governance portals**, online RTI applications, and **public dashboards** for real-time information sharing, inspired by RTI principles.

## 6. RTI and Social Justice

RTI also serves as a **social justice tool**, empowering marginalized groups to claim their rights.

### Examples:

- Rural workers use RTI to verify **NREGA wage payments**.
- Students access **scholarship data**.
- Communities check **environmental clearances** and **pollution control records**.

It thus bridges the gap between **law and the poor**, ensuring **inclusive governance**

## 7. RTI and Accountability of the Government

The **accountability principle** ensures that public authorities answer for their decisions and expenditure.

RTI enforces accountability by:

1. Making **information a matter of public record**.
2. Allowing **citizens to monitor performance** of public bodies.
3. Enabling **judicial or administrative action** in cases of misconduct or negligence.

## ■ Case Example:

In **Union of India v. ADR (2002)**, the Court held that voters have the right to know about political candidates — a direct exercise of accountability in public life.

## 8. RTI and Media

The media acts as a **bridge between government and citizens**.

RTI strengthens investigative journalism by:

- Providing access to authentic government records.

- Supporting fact-based reporting.
- Enhancing media's role as the **fourth pillar of democracy**.

Many landmark exposes — from **scams to policy failures** — were first revealed through **RTI-based reports**.

## 9. RTI and Transparency in Judiciary and Legislature

- **Legislature:** RTI enhances public understanding of parliamentary proceedings, committee reports, and budgetary allocations.
- **Judiciary:** Although certain information is protected (e.g., in-camera proceedings), administrative records and financial information of the judiciary can be accessed under RTI — ensuring **institutional accountability**.

### Judicial Stand:

In **CBSE v. Aditya Bandopadhyay (2011)**, the Supreme Court clarified that transparency should not undermine efficiency but should ensure accountability.

## 10. Challenges in Achieving Good Governance through RTI

Despite its success, RTI faces several practical challenges:

1. **Delay and non-compliance** by public authorities.
2. **Lack of awareness** among citizens.
3. **Threats to RTI activists** and whistleblowers.
4. **Overburdened Information Commissions.**
5. **Conflict with Official Secrets Act, 1923** and privacy concerns.

### Solution:

Strengthening **digital transparency**, protecting RTI users, and ensuring **timely disposal** of applications can make RTI a more effective instrument of governance.

## 11. Conclusion

The **Right to Information** is the **soul of democracy** and the **cornerstone of good governance**.

It transforms citizens from passive observers to **active participants** in public affairs.

By ensuring **transparency, accountability, and empowerment**, RTI promotes:

- Democratic participation
- Anti-corruption measures
- Administrative efficiency
- Social justice

Hence, the RTI Act, 2005, is not just a procedural law — it is a **constitutional promise of open governance**, making India's democracy **more vibrant, responsible, and answerable to its people**.

## UNIT – II

### RTI Act, 2005 – Salient Features

#### 1. Introduction



The **Right to Information Act, 2005** is one of the most progressive and powerful pieces of legislation in Indian democracy.

It gives practical shape to the **constitutional right to freedom of speech and expression (Article 19(1)(a))** by providing a **statutory right to access information** held by public authorities.

It came into force on **12th October 2005**, replacing the earlier **Freedom of Information Act, 2002**, which was never effectively implemented.

The RTI Act establishes a **legal framework for citizens to obtain information** and **for public authorities to disclose information proactively**.

## 2. Objective and Purpose of the RTI Act

The main objectives of the RTI Act are:

1. To **promote transparency and accountability** in the working of every public authority.
2. To **contain corruption** and misuse of power.
3. To make **citizens informed participants** in democracy.
4. To **improve governance** by ensuring openness in decision-making.
5. To harmonize the **conflict between secrecy and public interest**.

 **Preamble of the Act** clearly states:

“Democracy requires an informed citizenry and transparency of information which are vital to its functioning and also to contain corruption and hold Governments and their instrumentalities accountable to the governed.”

## 3. Structure of the RTI Act, 2005

The Act contains **6 Chapters** and **31 Sections**.

Its structure can be summarized as follows:

### Chapter Sections Contents

|     |       |                                                             |
|-----|-------|-------------------------------------------------------------|
| I   | 1–2   | Preliminary (Title, Extent, Definitions)                    |
| II  | 3–11  | Right to Information and Obligations of Public Authorities  |
| III | 12–14 | Central Information Commission                              |
| IV  | 15–17 | State Information Commission                                |
| V   | 18–20 | Powers and Functions of the Commissions, Appeals, Penalties |
| VI  | 21–31 | Miscellaneous Provisions                                    |

## 4. Chapter I – Preliminary

### (a) Short Title and Extent (Section 1)

- The Act is called the **Right to Information Act, 2005**.
- It extends to the **whole of India**, except **Jammu and Kashmir** (until 2019; now applicable after abrogation of Article 370).
- It came into force on **12th October 2005**.

### (b) Key Definitions (Section 2)

### 1. Information [Section 2(f)]

- Any material in any form including records, documents, memos, e-mails, opinions, press releases, circulars, contracts, reports, papers, samples, models, data material held in electronic form, etc.

### 2. Record [Section 2(i)]

- Any document, manuscript, file, register, map, tape, video, etc.

### 3. Public Authority [Section 2(h)]

- Any authority, body, or institution of self-government established or constituted by:
  - The Constitution, or
  - Any law made by Parliament or State Legislature, or
  - Notification/order of the Government.
- Includes **Government bodies, PSUs, NGOs** substantially financed by government funds.

### 4. Right to Information [Section 2(j)]

- Right to:
  - Inspect works, documents, and records.
  - Take certified copies.
  - Obtain information in print, electronic, or other forms.

### 5. Third Party [Section 2(n)]

- A person other than the citizen making the request, including a public authority.

## 5. Chapter II – Right to Information and Obligations of Public Authorities

### (a) Right to Information (Section 3)

- Every citizen has the **right to access information** held by or under the control of any public authority.
- It does **not require any reason or motive** to seek information.

### (b) Proactive Disclosure (Section 4)

- Every public authority must **publish information suo motu** (on its own) at regular intervals, including:
  - Functions and duties.
  - Decision-making procedures.
  - Budget allocation.
  - Details of subsidies and beneficiaries.
  - Directory of officers and employees.
  - Manner of execution of schemes and projects.

This aims to **reduce the need for formal RTI requests.**

### (c) Procedure for Request (Sections 6–7)

#### 1. Application:

- Written or electronic request to the **Public Information Officer (PIO)**.
- No need to state reasons.

## 2. Fees:

- Prescribed application fee and copying charges.

## 3. Time Limit for Reply:

- **30 days** from receipt of request.
- **48 hours** if it concerns the **life or liberty** of a person.
- **5 additional days** if transferred between departments.

## 4. Rejection of Request (Section 8 & 9):

- Can be denied for exemptions (national security, privacy, etc.).
- Must provide written reasons for denial.

### (d) Exemptions from Disclosure (Section 8)

Information may be denied if it:

- Affects **sovereignty and integrity** of India.
- Endangers **national security or foreign relations**.
- Relates to **trade secrets or intellectual property**.
- Involves **fiduciary or confidential relationship**.
- Endangers **life or safety** of a person.
- Relates to **cabinet papers or personal information**.

However, **Section 8(2)** provides that even exempted information **must be disclosed** if the **public interest outweighs harm**.

## 6. Chapter III – Central Information Commission (CIC)

### (a) Establishment (Section 12)

- Constituted by the **Central Government** through notification.
- Headed by a **Chief Information Commissioner (CIC)** and **up to 10 Information Commissioners**.

### (b) Appointment (Section 12(3))

- Appointed by the **President of India** on recommendation of a **committee** consisting of:
  1. Prime Minister (Chairperson)
  2. Leader of Opposition in Lok Sabha
  3. A Union Cabinet Minister nominated by the PM.

### (c) Tenure and Conditions (as per RTI Amendment Act, 2019)

- **Tenure:** Determined by the **Central Government** (earlier 5 years).
- **Salary and Service Conditions:** Also determined by the **Central Government** (earlier equal to Chief Election Commissioner).

#### **(d) Functions and Powers**

- Receive and inquire into complaints and appeals.
- Order disclosure of information.
- Impose penalties for non-compliance.
- Recommend steps for transparency in administration.

### **7. Chapter IV – State Information Commission (SIC)**

#### **(a) Establishment (Section 15)**

- Constituted by each **State Government**.
- Consists of a **State Chief Information Commissioner (SCIC)** and **up to 10 Information Commissioners**.

#### **(b) Appointment (Section 15(3))**

- Made by the **Governor**, based on recommendation of a committee including:
  1. Chief Minister (Chairperson)
  2. Leader of Opposition in Legislative Assembly
  3. A State Cabinet Minister nominated by the CM.

#### **(c) Powers and Functions**

Similar to CIC:

- Hear appeals and complaints.
- Direct disclosure of information.
- Impose penalties.
- Advise on reforms to promote transparency.

#### **(d) Tenure (RTI Amendment, 2019)**

- Tenure and service conditions of SCIC and SICs are now **decided by the respective State Government**.

### **8. Chapter V – Powers, Appeals, and Penalties**

#### **(a) Powers (Section 18)**

The CIC/SIC has the powers of a **civil court**, such as:

- Summoning and enforcing attendance.
- Requiring discovery and inspection of documents.
- Taking evidence on oath.
- Requisitioning public records.

#### **(b) Appeals (Section 19)**

1. **First Appeal:**
  - Lies to the **senior officer** of the same public authority within **30 days** of refusal.
2. **Second Appeal:**

- Lies to the **Central or State Information Commission** within **90 days**.

### (c) Penalties (Section 20)

- If PIO refuses to receive an application, delays information, or provides false information — The Commission may impose a **penalty of ₹250 per day**, up to a maximum of **₹25,000**.
- The Commission can also **recommend disciplinary action** against the officer concerned.

## 9. Chapter VI – Miscellaneous Provisions

- **Protection for Action Taken in Good Faith (Section 21).**
- **Bar of Jurisdiction (Section 23):**  
No court shall entertain suits or proceedings against decisions of CIC/SIC.
- **Annual Reports (Section 25):**  
Commissions must prepare and submit annual reports to Parliament/State Legislature.
- **Rule-making Power (Section 27–28):**  
Central and State Governments can frame rules for effective implementation.

## 10. Salient Features (Summary Points)

1. Statutory right to access information.
2. Applicable to all public authorities (except security/intelligence agencies under Section 24).
3. Time-bound and simple procedure.
4. Independent Information Commissions for appeal.
5. Strong penalty provisions to ensure compliance.
6. Public interest overrides exemptions.
7. Proactive disclosure to minimize formal RTI requests.
8. RTI Amendment, 2019 – tenure and conditions of commissioners under government control.

## 11. Conclusion

The **RTI Act, 2005** revolutionized the relationship between citizens and the government by establishing **transparency as a rule and secrecy as an exception**.

It operationalizes the **constitutional guarantee under Articles 19 and 21**, and stands as a pillar of **democratic accountability, administrative efficiency, and participatory governance**.

The Act has empowered ordinary citizens, transformed public offices, and created a culture of openness, making India one of the world's largest democracies with a **legally enforceable right to information**.

## RTI and Public Authorities

### 1. Meaning of Public Authority

Under **Section 2(h)** of the **Right to Information Act, 2005**, the term **“Public Authority”** is defined as:

*Any authority or body or institution of self-government established or constituted—*

- (a) by or under the Constitution of India; or
- (b) by any other law made by Parliament; or
- (c) by any other law made by the State Legislature; or
- (d) by notification issued or order made by the appropriate Government,

and includes—

- (i) any body owned, controlled or substantially financed; and
- (ii) non-Government organization substantially financed directly or indirectly by funds provided by the appropriate Government.

## 2. Key Points and Explanation

### 1. Public Authority = “State + Government-financed Bodies”

The definition of “public authority” is very wide. It covers all forms of government and semi-government institutions.

It is not limited to ministries or departments — even private bodies can fall within its scope if they are **substantially financed or controlled by the government**.

### 2. Constitutional Authorities

- President of India
- Governors
- Supreme Court, High Courts
- Election Commission, CAG, UPSC, etc.

All these are *public authorities* as they are created under the Constitution itself.

### 3. Statutory Bodies (by law of Parliament/State Legislature)

- National Human Rights Commission (NHRC)
- State Human Rights Commissions
- Central Vigilance Commission (CVC)
- Bar Council of India, UGC, etc.

These are created by statutes, hence fall within the definition.

### 4. Government Departments and Local Bodies

- Ministries, Municipal Corporations, Panchayats, Government Schools, Universities, etc.
- All departments and local self-governments are public authorities.

### 5. Bodies Owned or Controlled by Government

- Public Sector Undertakings (PSUs) like ONGC, SAIL, BHEL.
- Banks such as SBI, etc.
- Government-controlled corporations or cooperative societies.

### 6. Non-Government Organizations (NGOs) Substantially Financed by Government

- If the government provides major funding (directly or indirectly), the NGO becomes a “public authority”.
- *Example:* NGOs receiving large grants for rural development, health programs, or education. The test is “**substantial financing**”, not total financing.

## 3. Importance of Identifying Public Authorities

Only **public authorities** are under a **legal obligation** to:

- Appoint **Public Information Officers (PIOs)**;

- Maintain records properly;
- Provide information to citizens within prescribed time;
- Facilitate **transparency and accountability**.

If an organization is not a public authority under Section 2(h), the RTI Act does **not apply** to it.

#### 4. Case Laws on “Public Authority”

##### (i) Thalappalam Service Cooperative Bank Ltd. v. State of Kerala (2013) 16 SCC 82

- The Supreme Court held that a **cooperative society** will be a “public authority” only if it is **substantially financed or controlled** by the government.
- Mere supervision or regulation under a statute is **not enough**.
- “Substantial” means **a large portion** of financing, not small grants or routine benefits.

##### (ii) DAV College Trust and Management Society v. Director of Public Instructions (2019) 9 SCC 185

- The Court held that **educational institutions** which are **substantially financed by government grants** are public authorities under Section 2(h).
- Even if the institution is private, RTI applies if major funds come from government.

##### (iii) Indian Olympic Association v. Veeresh Malik (Delhi HC, 2010)

- The Court held that the **Indian Olympic Association** is a public authority since it performs public functions and receives government aid.
- The Court emphasized that **public money = public accountability**.

#### 5. Obligations of Public Authorities under RTI Act

According to **Section 4**, every public authority must—

##### 1. Maintain Records Properly

- Organize records for easy access.
- Use modern methods like digital storage.

##### 2. Publish Information Proactively (*Suo motu disclosure*)

- Structure, powers, and duties of officers.
- Decision-making procedures.
- Rules, regulations, and manuals.
- Budget allocation and expenditure.
- Names and designations of Public Information Officers (PIOs).

##### 3. Appoint Public Information Officers (PIOs)

- Every public authority must appoint **PIOs** and **Assistant PIOs** to handle RTI requests.

##### 4. Respond within Time Limits

- PIOs must provide information within **30 days** (or 48 hours in cases involving life or liberty).

##### 5. Ensure Transparency and Accountability

- Provide accurate, complete, and updated information.
- Encourage citizen participation and reduce corruption.

## 6. Exemptions (Not Treated as Public Authorities)

- Purely private companies not financed by the government.
- NGOs or societies receiving small grants.
- Bodies performing private or commercial functions only.

However, even private bodies may indirectly be covered **if the information is accessible through a public authority** (Section 2(f)).

## 7. Objective of Including Public Authorities

The inclusion of public authorities ensures that:

- **Government transparency** becomes a legal obligation.
- **Public money** is used with accountability.
- Citizens have the **right to monitor governance** and decision-making.
- Secrecy and corruption are minimized.

It transforms “**Right to Know**” from a theoretical idea into an **enforceable legal right**.

## 8. Conclusion

The concept of **Public Authorities** lies at the heart of the RTI Act.

It defines **who is answerable to the citizens** and **who must disclose information**.

By bringing constitutional, statutory, and government-funded bodies under its scope, the RTI Act ensures **transparency, accountability, and participatory democracy**.

The judiciary has consistently interpreted “public authority” broadly — ensuring that any body performing **public functions with public funds** remains accountable to the people.

### Central Information Commission and State Information Commission

*(Sections 12–17 of the RTI Act, 2005)*

#### 1. Introduction

The **Right to Information Act, 2005** established **independent authorities** at the Central and State levels to ensure the **effective implementation** of the Act.

These are:

- **Central Information Commission (CIC)** – for Union Government matters.
- **State Information Commission (SIC)** – for State Government matters.

Both Commissions act as **appellate and supervisory bodies**, ensuring that Public Authorities comply with the RTI law and citizens get their right to information effectively.

### CENTRAL INFORMATION COMMISSION (CIC)

#### 2. Establishment – Section 12

- The **Central Information Commission** is established by the **Central Government** through **notification in the Official Gazette**.



- It functions as an **independent body** not subject to government control in its decisions.
- Headquarters: **New Delhi** (with regional offices as needed).

### 3. Composition – Section 12(2)

The Commission consists of:

1. **Chief Information Commissioner (CIC)**, and
2. **Not more than ten Information Commissioners (ICs)**.

These members are appointed by the **President of India**.

### 4. Appointment Process – Section 12(3)

Appointments are made by the President **on the recommendation of a Committee** consisting of:

- **Prime Minister** (Chairperson)
- **Leader of Opposition** in the Lok Sabha
- **Union Cabinet Minister** nominated by the Prime Minister

This ensures a **non-partisan, balanced selection** process.

### 5. Qualifications – Section 12(5)

Members of the CIC should be **persons of eminence in public life** with wide knowledge and experience in:

- law,
- science and technology,
- social service,
- management,
- journalism,
- mass media, or
- administration and governance.

They **cannot be Members of Parliament or State Legislature**, or hold any office of profit, or have financial interests that may conflict with duties.

### 6. Term of Office – RTI (Amendment) Act, 2019

Earlier (before amendment):

- The Chief Information Commissioner and Information Commissioners held office for **5 years or until 65 years of age**, whichever was earlier.

After the **2019 Amendment**:

- The **term of office** and **conditions of service** (including salaries) of the CIC and ICs are determined by the **Central Government by notification**.
- This change replaced the fixed tenure and pay scales given earlier in the 2005 Act.

### 7. Removal – Section 14

The **President of India** may remove the CIC or any IC:

- On grounds of **proved misbehavior or incapacity**,
- After an **inquiry conducted by the Supreme Court**, if requested by the President.

They may also be removed if they:

- Are adjudged insolvent;
- Engage in paid employment outside duties;
- Are convicted of an offence involving moral turpitude;
- Become physically/mentally unfit; or
- Acquire financial interests affecting duties.

## **8. Powers and Functions – Section 18 & 19**

The **Central Information Commission** exercises both **supervisory and appellate powers** under the Act.

### **(a) Supervisory / Complaint Powers (Section 18)**

CIC may receive and inquire into complaints from any person:

1. Who has not been able to submit a request to PIO.
2. Who has been refused access to information.
3. Who has not received response within the time limit.
4. Who has been required to pay unreasonable fee.
5. Who believes the information is incomplete, misleading, or false.
6. Regarding any other matter relating to obtaining information.

CIC can **initiate inquiries, summon witnesses, require documents, and order disclosure**.

### **(b) Appellate Powers (Section 19)**

CIC hears **second appeals** against the decision of:

- Central Public Information Officers (CPIOs), and
- Appellate Authorities of Central Public Authorities.

It acts as the **final authority** under the RTI Act for central matters.

### **(c) Annual Reporting (Section 25)**

CIC must **prepare an annual report** on RTI implementation in central public authorities and submit it to the Central Government, which must **lay it before Parliament**.

## **9. Powers of Commission – Section 18(3)**

During inquiry, CIC has powers of a **civil court**:

- Summon and enforce attendance of witnesses;
- Compel discovery and inspection of documents;
- Receive evidence on affidavit;
- Requisition public records from any court or office.

Its decisions are **binding** on public authorities.

## 10. Independence of CIC

Although appointments and service conditions are notified by the government, the CIC functions **independently** and its orders cannot be questioned except by way of **judicial review** in High Court or Supreme Court under Articles 226/32.

## STATE INFORMATION COMMISSION (SIC)

### 11. Establishment – Section 15

Each State Government shall, by notification, constitute a **State Information Commission** to exercise the same powers within the State's jurisdiction.

### 12. Composition – Section 15(2)

- **State Chief Information Commissioner (SCIC)**, and
- **Not more than ten State Information Commissioners (SICs).**

### 13. Appointment – Section 15(3)

Appointed by the **Governor of the State** on recommendation of a committee consisting of:

- **Chief Minister** (Chairperson)
- **Leader of Opposition** in Legislative Assembly
- **Cabinet Minister** nominated by the Chief Minister

### 14. Qualifications, Term, and Removal

- Same as CIC and ICs (Sections 15(5), 15(6), and 17).
- After the **RTI (Amendment) Act, 2019**, their tenure, salary, and service conditions are also determined by the **State Government** by notification.
- Removal procedure similar to CIC, with Governor acting as the authority.

### 15. Powers and Functions of SIC

- To hear **complaints and appeals** against State Public Information Officers (SPIOs).
- To direct State Public Authorities to comply with RTI obligations.
- To submit **annual reports** to the **State Government**, which must be **laid before the State Legislature**.
- Possesses same powers as civil court during inquiry.

### 16. Case Laws

#### (i) Union of India v. Namit Sharma (2013) 10 SCC 359

- The Supreme Court clarified that Information Commissions perform **quasi-judicial functions**.
- Members need not all be from judicial background, but must have **independent and impartial character**.
- The judgment emphasized that the Commission must apply **judicial mind** while hearing appeals/complaints.

#### (ii) Manohar v. State of Maharashtra (2012) 13 SCC 14

- The Supreme Court held that **Information Commissions have wide powers** and their orders are binding unless stayed by a higher court.

### (iii) Chief Information Commissioner v. State of Manipur (2011) 15 SCC 1

- Clarified that the **second appeal** lies to the **Central or State Information Commission** depending on whether the public authority is central or state.

## 17. Importance of CIC and SIC

| Aspect                       | Significance                                                             |
|------------------------------|--------------------------------------------------------------------------|
| <b>Appellate Forum</b>       | Provides a platform for citizens dissatisfied with PIO responses.        |
| <b>Enforcement Mechanism</b> | Ensures government departments comply with RTI duties.                   |
| <b>Accountability Tool</b>   | Holds officials responsible for denial or delay of information.          |
| <b>Transparency Promoter</b> | Enhances openness in administration.                                     |
| <b>Public Confidence</b>     | Citizens trust that there is an independent body to protect their right. |

## 18. Conclusion

The **Central and State Information Commissions** form the **backbone of the RTI system** in India.

They not only enforce citizens' right to know but also act as **guardians of transparency and accountability** in governance.

By ensuring fair adjudication of complaints and appeals, they transform the **constitutional ideal of open government** into a living reality.

These Commissions are the **watchdogs of democracy**, ensuring that secrecy yields to openness and that information truly belongs to the people.

## **Powers and Functions of Information Commissions; Appeals and Penalties; and Miscellaneous Provisions (Including the RTI Amendment, 2019)**

### 1. Powers and Functions of Information Commissions (Sections 18–20)

The **Central Information Commission (CIC)** and **State Information Commissions (SICs)** are **independent statutory authorities** created under the **RTI Act, 2005** to ensure effective enforcement of the *Right to Information*.

Their **powers and functions** are primarily laid down under **Sections 18, 19, and 20** of the Act.

#### **A. Powers of the Commissions (Section 18)**

Under **Section 18**, the CIC or SIC has the power to **receive and inquire into complaints** from any person who faces difficulty in obtaining information.

A complaint can be made in the following cases:

1. **Inability to file an RTI request** to a Public Information Officer (PIO).
2. **Refusal** to accept an RTI application.
3. **No response** received within 30 days (or 48 hours in case of life and liberty).
4. **Unreasonable fees** demanded by the PIO.
5. **Incomplete, false, or misleading information** provided.

6. **Violation of any provision** of the Act.

**Inquiry Powers (Section 18(2)–(3)):**

While inquiring into a complaint, the Commission has the **powers of a civil court**:

- Summon and enforce attendance of witnesses.
- Compel discovery and inspection of documents.
- Receive evidence on affidavit.
- Requisition public records from any court or office.
- Examine witnesses under oath.

**Purpose:** These powers make the Commission an *independent quasi-judicial authority* with legal strength to ensure compliance.

**B. Functions of the Commissions**

**1. Adjudicatory Function**

- Hearing **complaints** (Section 18) and **second appeals** (Section 19).
- Deciding whether information should be disclosed.
- Ensuring compliance with the Act by all public authorities.

**2. Supervisory Function (Section 25)**

- Collect annual reports from all public authorities.
- Prepare and submit an **Annual Report** to the Government:
  - CIC → to Central Government → laid before Parliament.
  - SIC → to State Government → laid before State Legislature.

These reports review:

- Number of RTI applications received and disposed of,
- Amount of penalties imposed,
- Compliance of departments, and
- Recommendations for improvement.

**3. Advisory and Directional Function**

The Commissions may:

- Recommend reforms for **record management** and **information dissemination**.
- Advise on **suo motu publication** of information under Section 4.
- Direct training and awareness programs for officers and citizens.

**4. Enforcement Function**

The Commissions have authority to:

- **Order disclosure** of information.

- **Impose penalties** on erring PIOs.
- **Recommend disciplinary action** against officials violating the Act.

## 2. Appeals under the RTI Act (Section 19)

Appeal is the **remedy available to a citizen** when the PIO fails to provide information, delays response, or denies access unjustly.

There are **two stages** of appeal under the RTI Act:

### A. First Appeal – Section 19(1)

#### Filed To:

- The **First Appellate Authority (FAA)** — an officer senior in rank to the PIO in the same public authority.

#### Time Limit:

- Within **30 days** from the expiry of the prescribed response time or from receipt of the PIO's decision.
- The Appellate Authority may **allow delay** if justified.

#### Function:

- The FAA reviews the decision of the PIO and passes a reasoned order.
- The order should be issued **within 30–45 days**.

### B. Second Appeal – Section 19(3)

#### Filed To:

- The **Central Information Commission (CIC)** or **State Information Commission (SIC)** (depending on whether the authority is Central or State).

#### Time Limit:

- Within **90 days** from the date of the order of the First Appellate Authority.
- The Commission may condone delay if sufficient cause is shown.

#### Function:

- The Commission acts as the **final appellate authority** under the RTI Act.
- It can:
  - Direct PIOs to give information,
  - Impose penalties,
  - Order disciplinary action,
  - Award costs or compensation in appropriate cases.

### C. Binding Nature of Commission's Decision

The decision of the Information Commission is **final and binding** on the concerned Public Authority, subject only to **judicial review** under Article 226/32 by High Court or Supreme Court.

## 3. Penalties (Section 20)

The penalty provisions are the **teeth** of the RTI Act — they ensure accountability and compliance by government officers.

## A. Grounds for Penalty

The CIC or SIC may impose penalty on the **Public Information Officer (PIO)** if he:

1. Refuses to accept RTI application.
2. Fails to provide information within the specified time (30 days).
3. Malafidely denies the request.
4. Knowingly gives incorrect, incomplete, or misleading information.
5. Destroys information requested.
6. Obstructs the furnishing of information.

## B. Quantum of Penalty

- ₹ 250 per day till application is received or information is furnished.
- **Maximum limit: ₹ 25,000.**

Before imposing penalty, the PIO must be given an **opportunity of being heard** (principle of natural justice).

## C. Disciplinary Action (Section 20(2))

In addition to monetary penalty, the Commission may **recommend disciplinary action** under the service rules applicable to the concerned officer.

## D. Objective of Penalty

The penalty provisions are **deterrent** in nature — they ensure:

- Prompt and sincere performance by PIOs.
- Prevention of arbitrary or malicious denial.
- Effective realization of the citizen's right to information.

## 4. Miscellaneous Provisions (Sections 21–30)

| Section | Subject / Provision                                     | Purpose                                                                                                         |
|---------|---------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------|
| 21      | Protection of action taken in good faith                | Officers protected from legal proceedings for bona fide acts.                                                   |
| 22      | RTI Act to have overriding effect                       | RTI prevails over Official Secrets Act, 1923 and other inconsistent laws.                                       |
| 23      | Bar of jurisdiction of courts                           | No civil court can entertain cases under RTI; only HC/SC can review Commission orders.                          |
| 24      | Exemption of certain organizations (like IB, RAW, etc.) | Security and intelligence organizations exempt, except for information on corruption or human rights violation. |
| 25      | Annual reports                                          | CIC/SIC must submit annual reports to the Government.                                                           |
| 26      | Government duty to educate public                       | Government must organize awareness programs and training.                                                       |
| 27–28   | Power to make rules                                     | Central and State Governments can frame rules to implement the Act.                                             |

## Section Subject / Provision

## Purpose

**29–30** Repeal and savings

Repeals earlier Freedom of Information Act, 2002.

### 5. RTI (Amendment) Act, 2019

The **Right to Information (Amendment) Act, 2019** made three key changes related to the **tenure, salary, and service conditions** of the Chief and Information Commissioners.

| Aspect                     | Before Amendment (2005 Act)                      | After Amendment (2019 Act)                                     |
|----------------------------|--------------------------------------------------|----------------------------------------------------------------|
| <b>Tenure</b>              | 5 years or 65 years of age (whichever earlier)   | As prescribed by the <b>Central Government by notification</b> |
| <b>Salary of CIC</b>       | Equal to Chief Election Commissioner             | As prescribed by Central Government                            |
| <b>Salary of ICs</b>       | Equal to Election Commissioners                  | As prescribed by Central Government                            |
| <b>State Commissioners</b> | Similar parity with State Election Commissioners | Now also determined by <b>State Government by notification</b> |

#### Criticism:

- Reduced the *independence* of the Information Commissions, as the Government now controls their service conditions.
- Seen as a **step backward** in ensuring transparency and autonomy.

However, the government justified it as a **measure for administrative flexibility and uniformity**.

### 6. Landmark Case Laws

#### (i) **Namit Sharma v. Union of India (2013)**

- The Supreme Court held that the Commissions are **quasi-judicial bodies** and must act independently with fairness and reasoning.

#### (ii) **Chief Information Commissioner v. State of Manipur (2011)**

- Clarified that the Commission has **no power to enforce its decisions** directly like a court but its orders are binding unless stayed.

#### (iii) **CBSE v. Aditya Bandopadhyay (2011) 8 SCC 497**

- The Court observed that the RTI Act promotes **transparency and accountability**, but cannot be used to disrupt functioning or demand information beyond the records available.

### 7. Conclusion

The **Information Commissions** are the **guardians and enforcers** of the Right to Information.

Their powers to hear appeals, impose penalties, and ensure compliance make the RTI Act a **living instrument of transparency**.

The penalty provisions strengthen accountability, while miscellaneous clauses ensure protection and structure to the system.

Despite criticisms after the 2019 Amendment, the Commissions continue to uphold the principle that —

“Information is the soul of democracy, and access to information is the essence of good governance.”



# RTI and Judicial Activism

(Including RTI and High Courts, RTI and Supreme Court, and RTI vs. Judiciary)

## 1. Introduction

The **Right to Information (RTI)** is not merely a statutory right under the RTI Act, 2005 — it has deep **constitutional roots** and evolved primarily through **judicial activism**.

Before the RTI Act came into existence, the **Indian judiciary** played a **pioneering role** in recognizing the **Right to Know** as a part of **Fundamental Rights** under **Article 19(1)(a)** — Freedom of Speech and Expression.

The **Supreme Court and High Courts**, through their progressive interpretations, transformed a *democratic ideal* into an *enforceable legal right*.

## 2. Meaning of Judicial Activism

**Judicial Activism** refers to the proactive role played by the judiciary in:

- Expanding the scope of constitutional and legal rights,
- Filling gaps left by legislature or executive, and
- Advancing justice and social welfare through innovative interpretations.

In the context of RTI, **judicial activism** means:

“Judicial efforts that recognized citizens’ Right to Know as an essential element of freedom and democracy even before a statute (RTI Act) existed.”

## 3. Judicial Recognition of Right to Information – Pre-RTI Era

Before 2005, there was **no specific law** granting access to government information.

However, Indian courts repeatedly held that the **Right to Know** is implicit in **Article 19(1)(a)**.

### (i) State of U.P. v. Raj Narain (1975) AIR 865 (SC)

- This is the **foundation case** of RTI in India.
- The Supreme Court held:

“The people of this country have a right to know every public act, everything that is done in a public way by their public functionaries.”

- Justice Mathew emphasized that **secrecy in government is anti-democratic**, whereas openness promotes accountability.

This case arose when information was sought regarding expenses of the then Prime Minister during elections — the Court held that transparency is fundamental to democracy.

### (ii) S.P. Gupta v. Union of India (1982) AIR 149 (SC) — Judges Transfer Case

- Also called the **First Judges Case**, it is the **cornerstone of the RTI philosophy**.
- The Supreme Court ruled that:

“The concept of an open government is the direct emanation from the right to know which is implicit in the right to freedom of speech and expression.”

- The Court held that **disclosure of information** about governmental functioning strengthens democracy and public trust.

- It declared that **official secrecy cannot be justified** unless strictly necessary for national interest.

### (iii) **Secretary, Ministry of I & B v. Cricket Association of Bengal (1995) 2 SCC 161**

- The Supreme Court held that **the right to receive information** is part of **Article 19(1)(a)**.
- Freedom of speech includes not only the right to express but also the **right to be informed**.

### (iv) **PUCL v. Union of India (2003) 4 SCC 399**

- Concerned with disclosure of candidates' criminal and financial backgrounds before elections.
- The Court held that **voters have the right to know** relevant information about candidates.
- This case expanded the **democratic dimension** of the Right to Information.

## **4. Judicial Activism After the RTI Act, 2005**

After the enactment of the RTI Act, the judiciary continued to play an active role in **interpreting, protecting, and strengthening** the law.

Courts have:

- Prevented **misuse or overuse** of exemptions,
- Protected the **autonomy of Information Commissions**,
- Directed **disclosure** of public information in sensitive matters,
- Balanced **right to privacy vs. right to know**.

## **5. RTI and the High Courts**

### **(a) High Courts under RTI**

- High Courts are “**public authorities**” under Section 2(h) of the RTI Act.
- Citizens can seek information from **High Court Registries**, administrative records, and case-related data (subject to rules and exemptions).

### **(b) Judicial Pronouncements**

#### **1. Registrar General, Supreme Court of India v. R.S. Misra (Delhi HC, 2010)**

- Held that the judiciary is not beyond the scope of RTI.
- However, information must not interfere with **judicial independence or pending cases**.

#### **2. High Court of Gujarat v. State Information Commission (2020)**

- The Gujarat High Court held that the **RTI cannot override court procedure rules**.
- Information about judicial proceedings must be obtained **as per the High Court Rules**, not directly under RTI.

#### **3. Madras High Court (2011)**

- Stated that judicial records like judgments, orders, or case status are **public documents** and can be accessed, but the **process must follow court regulations**.

### **In essence:**

High Courts accept RTI applicability in their *administrative matters* but maintain procedural control over *judicial records* to protect integrity and order.

## 6. RTI and the Supreme Court

### (a) Applicability

The **Supreme Court of India** is also a **public authority** under the RTI Act.

RTI applies to:

- Administrative and financial matters of the Court,
- Appointment details, expenditure, etc.

However, RTI does **not allow interference with judicial decision-making** or confidential collegium discussions.

### (b) Key Case: Subhash Chandra Agarwal v. Supreme Court of India (2019) 16 SCC 435

- **Facts:** Information sought about judges' assets and collegium deliberations.
- **Issue:** Does RTI apply to the office of the Chief Justice of India (CJI)?
- **Judgment:**
  - The Supreme Court **affirmed that the CJI's office is a "public authority"** under RTI.
  - Judicial transparency and accountability are essential to democracy.
  - However, information can be **denied** if it affects:
    - Judicial independence,
    - Privacy of individuals, or
    - Confidentiality of collegium proceedings.

#### Significance:

The Court struck a **balance between transparency and judicial independence** — transparency is the rule, secrecy is the exception.

### (c) Administrative Transparency

Post this judgment, administrative data such as:

- Judges' travel expenses,
  - Court building expenditures,
  - Staff recruitment details, etc.
- can be disclosed under RTI — making the judiciary accountable in its **non-judicial functions**.

## 7. RTI vs. Judiciary

This is a delicate relationship. RTI promotes openness, but the judiciary must also protect independence and confidentiality.

| Aspect                | RTI Objective                               | Judiciary's Concern                      | Balance Adopted by Courts                                           |
|-----------------------|---------------------------------------------|------------------------------------------|---------------------------------------------------------------------|
| <b>Transparency</b>   | Promote openness in all public institutions | Judicial independence must be preserved  | Disclosure in administrative matters, not in judicial deliberations |
| <b>Accountability</b> | Judges accountable to people                | Cannot allow influence over adjudication | RTI applies only to non-judicial administrative records             |

| Aspect                 | RTI Objective            | Judiciary's Concern                    | Balance Adopted by Courts                                    |
|------------------------|--------------------------|----------------------------------------|--------------------------------------------------------------|
| <b>Confidentiality</b> | Reduce secrecy           | Collegium discussions are confidential | Partial transparency with reasonable restrictions            |
| <b>Privacy</b>         | Access to judges' assets | Judges' privacy under Art. 21          | Disclosure allowed only if public interest outweighs privacy |

Thus, the judiciary is subject to RTI, but with **institutional safeguards**.

## 8. Role of Judiciary in Strengthening RTI

### 1. Expanded Constitutional Basis

- Through *Raj Narain* and *S.P. Gupta*, courts recognized RTI as part of **Article 19(1)(a)**.

### 2. Ensured Accountability

- Courts compelled governments to justify denial of information.

### 3. Balanced Competing Rights

- Protected privacy (Article 21) and independence of judiciary while preserving transparency.

### 4. Guided Information Commissions

- Clarified their quasi-judicial nature (in *Namit Sharma* case).

### 5. Defended Citizens' Rights

- Directed disclosure in public interest even against powerful institutions.

## 9. Conclusion

Judicial activism has been the **soul of India's Right to Information movement**.

It began with judicial recognition of the **Right to Know**, and continues with judicial oversight to ensure RTI remains strong, balanced, and meaningful.

The Indian judiciary, while cautious of maintaining its independence, has ensured that **transparency is the foundation of democracy** and **secrecy is the exception**.

### Key Principle:

"Justice is not only to be done but must also be seen to be done — and the Right to Information makes this visibility possible."

## RTI and Other Laws (Only Sections Relevant to RTI)

### 1. Introduction

The **Right to Information Act, 2005** is a powerful transparency law.

However, it does **not work in isolation** — it interacts with several other laws that either:

- Promote** the disclosure of information, or
- Restrict** it to protect confidentiality, security, or justice.

To maintain balance, **Section 22 of the RTI Act** provides **overriding effect** over all other laws that are inconsistent with it.

## Section 22 – Overriding Effect:

“The provisions of this Act shall have effect notwithstanding anything inconsistent contained in the Official Secrets Act, 1923, and any other law for the time being in force.”

Thus, wherever there is a **conflict between RTI and another law, RTI will prevail**, *except* where information is specifically exempted under **Section 8 or 9** of the RTI Act.

## 2. RTI and the Information Technology (IT) Act, 2000

The **IT Act, 2000** deals with **electronic governance, digital records, cybersecurity, and privacy**. It complements the RTI Act in the age of digital information.

### Relevant Provisions:

| Provision                  | Content                                                                     | Relation with RTI                                                                                         |
|----------------------------|-----------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------|
| <b>Section 4</b>           | Legal recognition of electronic records and digital signatures.             | Enables government departments to maintain and share records electronically under RTI.                    |
| <b>Section 6</b>           | Use of electronic records in government offices.                            | Helps implementation of <b>Section 4(1)(b)</b> of RTI (suo motu disclosure on websites).                  |
| <b>Section 43 &amp; 66</b> | Deal with unauthorized access and data breaches.                            | Restrict disclosure of personal/confidential data under <b>Section 8(1)(j)</b> RTI Act.                   |
| <b>Section 69</b>          | Power to intercept or monitor information in interest of national security. | Such intercepted information <b>cannot be disclosed</b> under RTI (exempt under <b>Section 8(1)(a)</b> ). |
| <b>Section 72</b>          | Penalty for breach of confidentiality or privacy.                           | Protects personal information from being shared without authority.                                        |

### ✓ In Short:

RTI promotes transparency, while the IT Act ensures **security and privacy of electronic information**. Both must operate harmoniously — RTI encourages openness; IT Act safeguards against misuse.

## 3. RTI and the Contempt of Courts Act, 1971

This Act preserves the **authority and dignity of courts** by punishing acts that interfere with the administration of justice.

Under the RTI Act, courts are “public authorities,” but some information may be **restricted** to protect judicial integrity.

### Relevant Provisions:

| Provision           | Description                                                                                              | Impact on RTI                                                                |
|---------------------|----------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------|
| <b>Section 2(c)</b> | Defines “criminal contempt” as any act that scandalizes or tends to interfere with judicial proceedings. | Disclosure of sub-judice material under RTI may amount to contempt.          |
| <b>Section 12</b>   | Provides punishment for contempt.                                                                        | Prevents disclosure of material that interferes with pending judicial cases. |

### RTI Act – Section 8(1)(b):

Exempts information “which has been expressly forbidden to be published by any court of law or tribunal or the disclosure of which may constitute contempt of court.”

### ✓ In Short:

RTI ensures openness, but **respect for judicial process** is maintained.

Information that affects court proceedings or violates confidentiality is not disclosed.

## 4. RTI and the Intellectual Property (IP) Laws

IP laws protect **creations of mind** — like inventions, trademarks, copyrights, etc.

Sometimes, government departments hold information that is **commercially sensitive** or protected under IP laws.

### Relevant Provisions:

| Act / Section                               | Key Protection                                                                 | Relevance to RTI                                                                            |
|---------------------------------------------|--------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------|
| <b>Patents Act, 1970 – Section 11A, 122</b> | Provides secrecy until publication of patent; penalty for wrongful disclosure. | Such information can be <b>denied under Section 8(1)(d)</b> of RTI (commercial confidence). |
| <b>Copyright Act, 1957 – Section 52</b>     | Protects copyright works but allows fair use.                                  | Copying copyrighted government documents may need permission.                               |
| <b>Trade Marks Act, 1999 – Section 145</b>  | Protects confidential information related to trademark applications.           | Disclosure can be denied if it harms third-party commercial interests.                      |

### RTI Act – Section 8(1)(d):

Exempts information including **commercial confidence, trade secrets or intellectual property**, if disclosure harms competitive position of a third party.

## 5. RTI and the Bharatiya Nagrik Suraksha Sanhita Act, 2023 (BNSS)

*(Replaces the Code of Criminal Procedure, 1973 – in force soon)*

The BNSS governs **criminal investigations, arrests, and trials**.

Certain information related to police operations and criminal proceedings is restricted for reasons of public safety.

### Relevant Provisions:

| Provision (BNSS)                                                      | Purpose                                                        | Impact under RTI                                                                                           |
|-----------------------------------------------------------------------|----------------------------------------------------------------|------------------------------------------------------------------------------------------------------------|
| <b>Chapter XII (Investigation)</b>                                    | Police records, FIRs, and witness statements.                  | Disclosure may be denied under <b>Section 8(1)(h)</b> of RTI – if it impedes investigation or prosecution. |
| <b>Section 193–194 (Information to Police, Investigation Reports)</b> | Maintains confidentiality of ongoing investigations.           | RTI requests on ongoing criminal cases are often refused.                                                  |
| <b>Section 273 (Public Access to Trials)</b>                          | Promotes open trials, but with exceptions for sensitive cases. | Allows disclosure only after the case is complete or with court permission.                                |

## 6. Balancing RTI with Other Laws

| Area                            | RTI Promotes   | Other Laws Protect        | Balance Created By   |
|---------------------------------|----------------|---------------------------|----------------------|
| <b>Information Technology</b>   | Digital access | Privacy and data security | RTI + IT Act harmony |
| <b>Judiciary (Contempt Act)</b> | Transparency   | Judicial dignity          | Section 8(1)(b) RTI  |

| Area                           | RTI Promotes             | Other Laws Protect            | Balance Created By  |
|--------------------------------|--------------------------|-------------------------------|---------------------|
| <b>Intellectual Property</b>   | Public disclosure        | Trade secrets                 | Section 8(1)(d) RTI |
| <b>Criminal Justice (BNSS)</b> | Accountability of police | Investigation confidentiality | Section 8(1)(h) RTI |

## 7. Conclusion

The **Right to Information Act, 2005** aims to ensure transparency and accountability, but it must **coexist with other special laws** protecting privacy, justice, and national interest.

### Key Principle:

“Transparency is the rule, secrecy is the exception — but secrecy is justified when it protects justice, security, or genuine confidentiality.”

Thus, the courts and authorities must interpret RTI **harmoniously with other laws**, ensuring that **public interest** is always the guiding factor.

## **1 RTI and the Information Technology (IT) Act, 2000**

### Introduction

The **Information Technology Act, 2000** governs the legal framework for **electronic records, data security, cybercrime, and digital communication** in India.

Since most government records are now maintained in **electronic form**, the IT Act supports and complements the objectives of the **RTI Act, 2005**.

### Connection between RTI and IT Act

The RTI Act promotes **transparency**, while the IT Act ensures **security and authenticity** of information. Together, they make **E-Governance** effective and legally reliable.

### Relevant Sections:

| Section                    | Provision                                               | Relation with RTI Act                                                                                                            |
|----------------------------|---------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------|
| <b>Section 4</b>           | Legal recognition of electronic records and signatures. | Allows electronic record maintenance and sharing as per <b>Section 4(1)(b)</b> of RTI Act (suo motu disclosure).                 |
| <b>Section 6</b>           | Use of electronic forms and filing of documents.        | Helps in online RTI applications, e-filing and digital transparency.                                                             |
| <b>Section 43 &amp; 66</b> | Deals with unauthorized access and cybercrimes.         | Prevents misuse of data received under RTI and supports <b>Section 8(1)(j)</b> (protection of privacy).                          |
| <b>Section 69</b>          | Power to intercept or monitor information for security. | Information obtained through interception cannot be disclosed under RTI; exempted by <b>Section 8(1)(a)</b> (national security). |
| <b>Section 72</b>          | Penalty for breach of confidentiality and privacy.      | Ensures that RTI disclosure doesn't violate confidentiality of digital data.                                                     |

### Conclusion

- RTI promotes **access** to information.
  - IT Act ensures **protection** of sensitive digital data.
- Both laws work together to build a transparent yet secure digital administration.

## **2 RTI and the Contempt of Courts Act, 1971**

### **Introduction**

The **Contempt of Courts Act, 1971** preserves the **authority, independence, and dignity** of courts.

The judiciary, being a “public authority” under the RTI Act, is also subject to transparency — but within limits.

### **Relevant Sections and their Impact:**

| Section             | Provision                                                                                     | Impact on RTI                                                                    |
|---------------------|-----------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------|
| <b>Section 2(c)</b> | Defines “Criminal Contempt” – includes scandalizing or interfering with judicial proceedings. | RTI disclosure cannot include material that would amount to contempt of court.   |
| <b>Section 12</b>   | Provides punishment for contempt.                                                             | Restricts release of information that can interfere with pending judicial cases. |

### **RTI Act, Section 8(1)(b):**

“Information which has been expressly forbidden to be published by any court of law or tribunal or the disclosure of which may constitute contempt of court shall not be disclosed.”

### **Case Reference:**

- **Registrar General, Supreme Court v. R.S. Misra (2010)** – RTI applies to judiciary but cannot be used to interfere in judicial functions or pending proceedings.

### **Conclusion**

RTI ensures transparency, but **judicial independence** must be protected.

Therefore, information is denied when its disclosure:

- Disrespects court orders,
- Interferes with justice, or
- Constitutes contempt.

## **3 RTI and Acts Related to Intellectual Property (IP Laws)**

### **Introduction**

IP laws protect **creations of mind** — inventions, literary works, designs, and trademarks.

Public authorities often hold IP-related information (like patents, tenders, research data) which may involve **commercial secrets**.

The RTI Act promotes **transparency**, but disclosure of IP information can harm **competitive positions** or **private rights**.

### **Relevant Sections and Relationship:**

| Act / Section                                    | Provision                                                                                | RTI Relevance                                                                                                              |
|--------------------------------------------------|------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------|
| <b>Patents Act, 1970 – Section 11A &amp; 122</b> | Patent details remain confidential until publication; wrongful disclosure is punishable. | RTI cannot force disclosure of unpublished patent details. Protected under <b>Section 8(1)(d)</b> (commercial confidence). |
| <b>Trade Marks Act, 1999 – Section 145</b>       | Provides for confidentiality in trademark applications.                                  | Disclosure may be refused if it harms the competitive position of a party.                                                 |



| Act / Section                           | Provision                                    | RTI Relevance                                                                                      |
|-----------------------------------------|----------------------------------------------|----------------------------------------------------------------------------------------------------|
| <b>Copyright Act, 1957 – Section 52</b> | Allows fair use but protects creative works. | Copying or reproducing government documents may need permission; otherwise, it violates IP rights. |

#### RTI Act – Section 8(1)(d):

“Information including commercial confidence, trade secrets or intellectual property, disclosure of which would harm the competitive position of a third party, shall not be disclosed unless larger public interest justifies it.”

#### Conclusion

- RTI promotes transparency in public institutions.
  - IP laws safeguard innovation and trade secrets.
- Thus, information can only be disclosed **if public interest outweighs private interest.**

### **RTI and the Bharatiya Nagrik Suraksha Sanhita Act, 2023 (BNSS)**

#### Introduction

The **Bharatiya Nagrik Suraksha Sanhita Act, 2023 (BNSS)** replaces the **Code of Criminal Procedure, 1973 (CrPC)**. It governs the process of **investigation, arrest, trial, and criminal justice**.

RTI aims for transparency in governance, but disclosure of sensitive police or criminal records may affect investigations or fair trials.

#### Relevant Provisions and their Link with RTI:

| BNSS Provision                     | Purpose                                                      | RTI Impact                                                                                         |
|------------------------------------|--------------------------------------------------------------|----------------------------------------------------------------------------------------------------|
| <b>Chapter XII (Investigation)</b> | Records of FIRs, witnesses, and reports are confidential.    | Information can be denied under <b>Section 8(1)(h)</b> of RTI if disclosure impedes investigation. |
| <b>Section 193–194</b>             | Deals with recording and forwarding information to police.   | Information relating to ongoing cases is generally exempt.                                         |
| <b>Section 273 (Public Trials)</b> | Ensures open trials but with exceptions for sensitive cases. | Court permission required before releasing trial records.                                          |

#### RTI Act – Section 8(1)(h):

“Information which would impede the process of investigation or apprehension or prosecution of offenders shall not be disclosed.”

#### Conclusion

RTI cannot override the confidentiality of **criminal investigations** or **trial processes**. However, once proceedings conclude, information may be shared to ensure **accountability and transparency** in the justice system.

#### Final Overview Table

| Law                 | Purpose                               | RTI Relevance                    | Key RTI Section                             |
|---------------------|---------------------------------------|----------------------------------|---------------------------------------------|
| <b>IT Act, 2000</b> | E-Governance, digital data protection | Promotes electronic transparency | Sec. 4, 6 of IT + Sec. 4(1)(b), 8(1)(j) RTI |

| Law                                     | Purpose                        | RTI Relevance                                 | Key RTI Section  |
|-----------------------------------------|--------------------------------|-----------------------------------------------|------------------|
| <b>Contempt of Courts Act, 1971</b>     | Protects dignity of courts     | Restricts disclosure interfering with justice | Sec. 8(1)(b) RTI |
| <b>IP Laws (Patents, TM, Copyright)</b> | Protects intellectual property | Prevents disclosure of trade secrets          | Sec. 8(1)(d) RTI |
| <b>BNSS, 2023</b>                       | Governs criminal procedure     | Restricts info on ongoing investigations      | Sec. 8(1)(h) RTI |

## Overall Conclusion

The RTI Act, 2005 is a **transparency law**, but it operates **in harmony with other statutes**.

When conflict arises, **Section 22 of the RTI Act** ensures RTI prevails — unless **secrecy is essential for national security, judicial independence, or fair investigation**.

### Essence:

“Transparency is the rule — secrecy only where justice or security demands it.”

## UNIT – IV

### **1** Whistle Blowers Protection Act, 2014

#### 1. Introduction

The **Whistle Blowers Protection Act, 2014** (WBP Act) was enacted to promote **transparency, accountability, and good governance** by **protecting individuals** who expose corruption, misuse of power, or wrongdoing in public offices.

It is closely connected to the **Right to Information Act, 2005**, because:

- RTI allows citizens to *access* information;
- WBP Act allows citizens and officials to *expose* corruption using that information safely.

**Purpose:** To encourage people to report corruption without fear of victimization.

#### 2. Meaning of “Whistle Blower”

A **Whistle Blower** is any person —

- Who makes a disclosure about **corruption, misuse of power, or criminal offences** by a public servant, and
- Requests that their identity be protected.

In simple words:

A whistle blower is **a person who exposes wrongdoing in the interest of the public**.

#### 3. Objectives of the Act

1. To establish a system for **receiving complaints** about corruption in public offices.
2. To provide **protection to whistle blowers** from victimization.
3. To ensure **inquiry and action** against corruption or misuse of power.
4. To maintain **confidentiality** of complainants.
5. To promote **transparency and good governance** in public administration.

#### 4. Background and Origin

The demand for whistleblower protection arose after several incidents, such as:

- **Murder of Satyendra Dubey (2003):** an engineer who exposed corruption in the Golden Quadrilateral project.
- **Murder of Shanmughan Manjunath (2005):** an IOC officer who exposed petrol adulteration.

In response, the **Central Vigilance Commission (CVC)** was empowered in 2004 to receive complaints. Later, Parliament enacted the **Whistle Blowers Protection Act, 2014**, to provide a **statutory framework**.

#### 5. Important Definitions (Key Sections)

| Term                       | Section                | Meaning                                                                           |
|----------------------------|------------------------|-----------------------------------------------------------------------------------|
| <b>Competent Authority</b> | Section 3(b)           | Authority competent to receive and inquire into public interest disclosures.      |
| <b>Public Servant</b>      | Section 2(c)           | Includes any person working in central/state government, corporations, PSUs, etc. |
| <b>Disclosure</b>          | Section 3(d)           | Complaint made in public interest, revealing corruption or misuse of office.      |
| <b>Victimization</b>       | Not explicitly defined | Any action causing harm, discrimination, or harassment to whistleblower.          |

#### 6. Authorities under the Act

| Authority                                          | Who can it Receive Complaints Against?                           |
|----------------------------------------------------|------------------------------------------------------------------|
| <b>Prime Minister / Minister / MP</b>              | Lokpal (after amendment; earlier PM was excluded)                |
| <b>Central Government Officers / PSU Employees</b> | <b>Central Vigilance Commission (CVC)</b>                        |
| <b>State Government Officers</b>                   | <b>State Vigilance Commission / State Government</b>             |
| <b>Judiciary</b>                                   | Excluded from the Act (handled separately by judicial procedure) |

#### 7. Procedure for Making a Complaint

1. **Written Complaint:** Must be made in writing or electronically, with full details of the act of corruption or misuse of power.
2. **Identity of Complainant:** Must be disclosed to the competent authority (not anonymous).
3. **Confidentiality:** The authority must keep the complainant's identity **secret** unless required by law.
4. **Preliminary Scrutiny:** The authority checks whether the complaint is genuine and within jurisdiction.
5. **Investigation:** If valid, it is forwarded to the **CVC / concerned department** for inquiry.
6. **Report:** Action taken must be reported back to the competent authority.

Anonymous complaints are not allowed to prevent misuse of the law.

#### 8. Protection to Whistle Blowers

The Act provides the following **protections**:

### 1. Protection from Victimization:

- No official can harass, transfer, demote, or threaten the whistleblower.
- Any attempt to harm the whistleblower can be punished.

### 2. Confidentiality:

- Identity of the complainant is protected.
- Disclosure without consent is punishable.

### 3. Penalties for False Complaints:

- If a complaint is found false or malicious, the complainant may face action.
- This prevents frivolous use of the Act.

### 4. Protection of Witnesses:

- Persons assisting in inquiry are also protected.

## 9. Offences and Penalties

### Offence

### Penalty / Consequence

Revealing the identity of a whistleblower Imprisonment up to 3 years + fine up to ₹50,000

Victimizing or harassing a whistleblower Disciplinary action or departmental proceedings

False or misleading disclosure Punishment equivalent to departmental misconduct

## 10. Relationship between RTI and Whistle Blowers Protection Act

### Aspect RTI Act, 2005

### Whistle Blowers Protection Act, 2014

|                    |                                                       |                                                                    |
|--------------------|-------------------------------------------------------|--------------------------------------------------------------------|
| <b>Objective</b>   | Promote transparency by giving access to information. | Promote accountability by protecting people who expose corruption. |
| <b>Beneficiary</b> | Any citizen.                                          | Any person (public servant or citizen) who exposes wrongdoing.     |
| <b>Nature</b>      | Right-based.                                          | Protective and preventive.                                         |
| <b>Focus</b>       | Access to information.                                | Disclosure of corruption.                                          |
| <b>Protection</b>  | No personal protection, only access.                  | Legal protection from retaliation.                                 |
| <b>Connection</b>  | RTI provides information needed to expose corruption. | WBP Act ensures the exposor is protected.                          |

✓ Thus, both Acts work together:

RTI **uncovers corruption**, and WBP Act **protects the informer**.

## 11. Limitations / Criticisms of the Act

1. **Exclusion of Armed Forces and Judiciary:** Certain categories are kept outside the Act's scope.
2. **No protection for anonymous complaints:** May discourage genuine whistleblowers fearing exposure.
3. **No time limit for inquiry:** Can delay justice.

4. **2015 Amendment Proposal (Not enacted):** Tried to weaken the Act by restricting disclosure of information covered under Official Secrets Act or Section 8 RTI — criticized for being against transparency.

## 12. Importance in Democracy

- Encourages **ethical governance** and **citizen participation**.
- Builds **public trust** in administration.
- Deters corruption by increasing risk of exposure.
- Promotes **transparency, honesty, and accountability** — the core principles of democracy.

### Moral Principle:

“Silence protects the corrupt — truth protects the nation.”

## 13. Conclusion

The **Whistle Blowers Protection Act, 2014** is a vital companion to the **RTI Act** in India’s transparency framework. While RTI empowers citizens to seek information, the WBP Act ensures **safety and encouragement** for those who act upon that information to expose corruption.

However, effective implementation and strong legal protection are essential to make it a **true safeguard for truth-tellers** in public life.

### Essence:

“Right to Information gives the light; Whistleblower Protection keeps the flame alive.”

## **2** RTI – Emerging Trends: Media and RTI

### 1. Introduction

The **Right to Information Act, 2005** (RTI) has transformed India into a **knowledge-based and participatory democracy**.

One of the most powerful catalysts of this transformation is the **media**, which plays a crucial role in spreading awareness, investigating corruption, and ensuring accountability through the use of RTI.

The **media and RTI** together strengthen **transparency, good governance, and democratic values**.

### 2. Meaning of “Emerging Trends”

**Emerging trends** under RTI refer to **new patterns, uses, and challenges** that have evolved since the Act’s enforcement — particularly in the **digital age**, and in relation to:

- Media and journalism,
- Technology and e-governance,
- Public participation and social activism.

### 3. Role of Media in Promoting RTI

The **media**—both print and electronic—has been a **major force** in popularizing the use of RTI in India.

| Function                 | Role of Media                                                 |
|--------------------------|---------------------------------------------------------------|
| Awareness creation       | Media informs citizens about their right to seek information. |
| Investigative journalism | Media uses RTI to uncover scams and expose misuse of power.   |

| Function                            | Role of Media                                                            |
|-------------------------------------|--------------------------------------------------------------------------|
| <b>Public pressure</b>              | News reports create pressure on government for transparency.             |
| <b>Watchdog of democracy</b>        | Media acts as the fourth pillar of democracy by ensuring accountability. |
| <b>Encouraging citizen activism</b> | Media campaigns motivate people to file RTI applications.                |

#### 4. RTI as a Tool of Investigative Journalism

Many journalists have effectively used RTI to expose **corruption, irregularities, and maladministration**. Some notable examples:

| Case / Event                                | Information Exposed through RTI                                       |
|---------------------------------------------|-----------------------------------------------------------------------|
| <b>Adarsh Housing Scam</b>                  | RTI exposed irregularities in land allocation to defense personnel.   |
| <b>2G Spectrum Scam</b>                     | RTI revealed lack of transparency in spectrum allocation process.     |
| <b>Mid-Day Meal Scheme (various states)</b> | RTI applications exposed misuse of funds and poor implementation.     |
| <b>Expenditure of MPs / MLAs</b>            | Media used RTI to obtain details of fund utilization and performance. |

Through these disclosures, the **media** turned RTI into a **weapon against corruption** and a **guardian of public accountability**.

#### 5. RTI and the Digital Media Era

With the rise of **digital platforms, social media, and online journalism**, RTI has become even more accessible.

- Citizens can now **file RTI applications online** (via portals like *rtionline.gov.in*).
- Journalists use **social media** to share RTI-based findings widely.
- **Crowdsourced RTI campaigns** allow people to collectively demand answers.

Digital media amplifies RTI's power by making information **instant, shareable, and impactful**.

#### 6. Positive Impacts of RTI–Media Interaction

1. **Transparency in Governance:**  
RTI information published by media helps reveal how public money is spent.
2. **Accountability of Officials:**  
Government departments become cautious knowing that data can be publicly exposed.
3. **Citizen Empowerment:**  
Ordinary citizens are inspired to question government actions.
4. **Reduction in Corruption:**  
The risk of exposure discourages officials from indulging in illegal acts.
5. **Strengthening Democracy:**  
Both media and RTI uphold the principles of *open government* and *freedom of expression*.

#### 7. Challenges in the RTI–Media Relationship

Despite the positive impacts, there are several challenges:

1. **Misuse of RTI by media or individuals** – filing RTIs for publicity rather than public interest.

2. **Threats and harassment of journalists** who expose corruption through RTI-based stories.
3. **Delay in information disclosure** or denial under vague exemptions (e.g., national security).
4. **Fake news or half-truths** – misuse of partial RTI data without verification.
5. **Lack of protection for media whistleblowers** – fear of victimization remains high.

## 8. Judicial Support and Freedom of the Press

Indian judiciary has consistently recognized the connection between **freedom of speech and RTI**.

- **Case: Indian Express Newspapers v. Union of India (1985)**  
The Supreme Court held that **freedom of the press** is an essential part of **Article 19(1)(a)** (Freedom of Speech and Expression).
- **Case: Secretary, Ministry of I&B v. Cricket Association of Bengal (1995)**  
The Court ruled that the right to freedom of speech includes **the right to receive and disseminate information**.

These judgments laid the **constitutional foundation** for RTI and for the **media's right to access information**.

## 9. RTI, Media, and Good Governance

The partnership between **RTI and media** ensures **good governance**, which is based on:

- **Transparency**
- **Accountability**
- **Participation**
- **Rule of Law**

Media reports based on RTI strengthen **public trust**, improve **service delivery**, and make government **answerable to the people**.

**Good Governance = Transparency + Accountability + Participation**

## 10. Government Initiatives Supporting RTI and Media

1. **Online RTI Portals** (Central & State): filing RTI applications digitally.
2. **Proactive Disclosure (Section 4 RTI Act):**  
Government departments must publish regular information online, reducing the need for citizens to file RTIs.
3. **Digital India Initiative:** promotes open data and citizen participation.
4. **Media Training & RTI Workshops:** help journalists understand and use RTI effectively.

## 11. Limitations and Future Trends

### Current Issues

### Future Directions / Solutions

Lack of awareness among rural media    More RTI training for local journalists

Harassment of RTI activists    Stronger protection laws & use of Whistle Blower Act

Poor record-keeping by government    Full digitization and open-data platforms

## Current Issues

Delay in appeals

## Future Directions / Solutions

Strengthen Information Commissions' infrastructure

## 12. Conclusion

The **media and RTI** together act as **pillars of democratic accountability**.

While RTI gives citizens the **right to know**, media gives them the **voice to speak** and **platform to act**.

Both must work responsibly:

- **Media** should verify and report information honestly.
- **Government** should cooperate and disclose information proactively.

**In essence:**

"RTI empowers the people — media amplifies their power."

Together, they ensure that **no truth remains hidden in a democracy**.

## **3** Official Secrets Act, 1923; Atomic Energy Act, 1962 & RTI

### 1. Introduction

The **Right to Information Act, 2005** was enacted to promote **transparency and accountability** in governance.

However, the RTI Act coexists with several **security and confidentiality laws**, such as:

1. **The Official Secrets Act, 1923 (OSA)**
2. **The Atomic Energy Act, 1962 (AEA)**

These Acts were enacted to **protect national security and sensitive information**, even if it limits the public's right to know.

The key challenge lies in **balancing "Right to Know" under RTI with "Need for Secrecy" under Security Laws**.

### 2. Official Secrets Act, 1923

#### (a) Background and Purpose

The **Official Secrets Act, 1923** is a colonial-era legislation passed by the British Government to safeguard official information, documents, and data from being disclosed to the public — especially those that could endanger national security or state interests.

The Act was designed to **prevent espionage, sabotage, and leakage of confidential government information**.

Even after independence, India **retained** this law with minor changes.

#### (b) Object of the Act

- To **protect the sovereignty and integrity** of India.
- To prevent **spying and disclosure of official secrets** that might aid enemies of the state.
- To ensure that government employees and others maintain **confidentiality** in handling classified information.

#### (c) Important Provisions of the Act



| Section   | Subject Matter                                                                 | Key Points                                                                                                       |
|-----------|--------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------|
| Section 3 | <b>Spying against the Government</b>                                           | Punishes anyone who approaches or enters prohibited places for secret information prejudicial to India's safety. |
| Section 5 | <b>Wrongful communication of information</b>                                   | Prohibits communication, transmission, or use of any official code, password, or sketch to unauthorized persons. |
| Section 6 | <b>Unauthorised communication of information obtained in official capacity</b> | Applies to government servants or those entrusted with official secrets.                                         |
| Section 8 | <b>Penalty for harbouring spies</b>                                            | Punishes anyone who helps a person guilty under this Act.                                                        |
| Section 9 | <b>Attempts and Abetments</b>                                                  | Covers attempts, abetments, and conspiracies.                                                                    |

#### **Punishment:**

Imprisonment up to **14 years** (for serious offences) or fine or both.

#### **(d) Relationship with RTI Act, 2005**

The **RTI Act** is a **later and special law** that seeks to **override earlier secrecy laws** where transparency serves the public interest.

#### **Section 22 of RTI Act, 2005:**

*"The provisions of this Act shall have effect notwithstanding anything inconsistent therewith contained in the Official Secrets Act, 1923 or any other law for the time being in force."*

#### **Meaning:**

If there is a conflict between **RTI** and **OSA**, the **RTI Act prevails**.

However, **Section 8(1)(a)** of RTI also provides that:

Information which would **prejudicially affect the security, sovereignty, integrity, or strategic interests of India** shall not be disclosed.

Thus, the RTI Act **balances transparency and national security** by allowing secrecy where disclosure could endanger the nation.

#### **(e) Judicial Interpretation**

##### **Case: People's Union for Civil Liberties (PUCL) v. Union of India (2004)**

- The Supreme Court held that **Right to Information** is a **part of Article 19(1)(a)** (Freedom of Speech and Expression).
- However, this right is **subject to reasonable restrictions**, including **national security and public order**.

Therefore, **RTI cannot be used to demand information** that would harm the safety or sovereignty of India — consistent with the **Official Secrets Act**.

#### **(f) Criticism of the Official Secrets Act**

1. **Colonial and outdated** – enacted to suppress information during British rule.
2. **Vague definitions** of "official secret" and "prohibited place."

3. **Conflict with RTI principles** of transparency and open governance.
4. **Misuse by officials** to deny information even when it is not related to national security.

There is a strong demand for **reform or repeal** of the OSA to align it with the democratic spirit of the **RTI Act**.

### 3. Atomic Energy Act, 1962

#### (a) Object and Purpose

The **Atomic Energy Act, 1962** regulates and controls the development, production, and use of **atomic energy and radioactive substances** in India.

The main purpose is to:

- Ensure that nuclear technology and materials are used **only for peaceful purposes**;
- Protect **national security and public safety**;
- Prevent **unauthorized access or misuse** of atomic energy information.

#### (b) Key Provisions

| Section    | Subject                                  | Meaning / Effect                                                                                                                                 |
|------------|------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------|
| Section 18 | Prohibition of disclosure of information | No person shall communicate or disclose information about the location, nature, or contents of atomic plants or materials without authorization. |
| Section 19 | Prohibition of entry                     | Unauthorized persons cannot enter places related to atomic energy operations.                                                                    |
| Section 20 | Prevention of offences                   | Provides penalties for wrongful disclosure or unauthorized handling of atomic information.                                                       |

**Punishment:** Imprisonment up to **5 years** and fine.

#### (c) Relation with RTI Act, 2005

The RTI Act under **Section 8(1)(a)** restricts disclosure of information that:

“Would prejudicially affect the security, strategic, or scientific interests of the State.”

Hence, **any information** related to nuclear research, atomic plants, or national defence is **exempt from disclosure**.

Further, **Section 8(1)(d)** also protects **commercial confidence, trade secrets, or intellectual property**, which may apply to atomic energy research.

#### ✅ Conclusion:

Information under the **Atomic Energy Act** is **not subject to RTI disclosure** if it threatens national security or violates secrecy provisions.

### 4. Harmonizing RTI with Secrecy Laws

The relationship between RTI and secrecy laws can be understood through the **principle of “public interest override.”**

| Law                               | Purpose                                                | RTI's Stand                                                            |
|-----------------------------------|--------------------------------------------------------|------------------------------------------------------------------------|
| <b>Official Secrets Act, 1923</b> | Protects national security and state secrets.          | RTI overrides it where disclosure is in public interest (Sec. 22 RTI). |
| <b>Atomic Energy Act, 1962</b>    | Ensures safety and confidentiality in nuclear matters. | RTI excludes it under Section 8(1)(a).                                 |
| <b>RTI Act, 2005</b>              | Promotes transparency and accountability.              | Balances secrecy and openness through reasonable exemptions.           |

#### Key Principle:

RTI promotes transparency **except** where secrecy is essential for **national security or scientific safety**.

### 5. Case Laws on Conflict between RTI and Secrecy

#### (i) Central Board of Secondary Education v. Aditya Bandopadhyay (2011)

Supreme Court emphasized that **RTI is not absolute**; information exempted under Section 8 must be respected.

#### (ii) S.P. Gupta v. Union of India (1982)

The Court held that the government cannot withhold information **merely by labeling it "secret"** unless disclosure would actually harm public interest.

Therefore, **secrecy must be justified**, not presumed.

### 6. Comparative Perspective

- Many democratic countries like the **UK, USA, and Canada** also protect national security information but ensure **independent oversight** to prevent abuse of secrecy laws.
- India's RTI Act follows a similar principle: **transparency is the rule; secrecy is the exception**.

### 7. Conclusion

The **Official Secrets Act, 1923** and **Atomic Energy Act, 1962** serve important national interests by protecting security and scientific confidentiality.

However, the **Right to Information Act, 2005** ensures that these laws are **not misused to hide corruption or deny legitimate information**.

#### Balance is the key:

RTI empowers the people; secrecy protects the nation.

The goal is not to choose one over the other, but to **maintain transparency without compromising security**.

## Quick Revision / Short Notes Sheet

### UNIT – I: Jurisprudential Aspects & Constitutional Framework

#### 1 RTI – Jurisprudential Aspects: Concepts of Freedom, Justice, and Legal Rights

| Concept        | Essence                                                                                          |
|----------------|--------------------------------------------------------------------------------------------------|
| <b>Freedom</b> | Based on Article 19(1)(a) – Right to Freedom of Speech & Expression → includes "Right to Know."  |
| <b>Justice</b> | RTI promotes <i>distributive and procedural justice</i> by ensuring fairness and accountability. |

| Concept            | Essence                                                                                                            |
|--------------------|--------------------------------------------------------------------------------------------------------------------|
| Legal Rights       | RTI is a <b>statutory right</b> under the RTI Act, 2005, and a <b>constitutional right</b> under Article 19(1)(a). |
| Philosophical Base | Transparency is essential for democracy → "Sunlight is the best disinfectant." (Justice Louis Brandeis)            |

### Important Case Laws:

- *State of U.P. v. Raj Narain* (1975) – Right to know is part of freedom of speech.
- *S.P. Gupta v. Union of India* (1982) – Government cannot withhold information except where public interest demands secrecy.

## Right to Information – General Overview

### (a) From Stone Age to the Information Age

- Ancient systems: Knowledge restricted to elites.
- Modern era: Information recognized as *public power*.
- Digital governance → "Information is the oxygen of democracy."

### (b) RTI and International Covenants

- **Universal Declaration of Human Rights (Art. 19)** – Freedom to seek and receive information.
- **ICCPR (Art. 19)** – Legal basis for global recognition of RTI.
- RTI is a **global human right**.

### (c) RTI in Other Countries

- **USA:** Freedom of Information Act, 1966.
- **UK:** Freedom of Information Act, 2000.
- **EU:** Transparency Directive.
- **India:** RTI Act, 2005 – among the strongest globally due to public-interest override (Sec. 8(2)).

## Constitutional Provisions

- **Article 19(1)(a):** Right to Freedom of Speech & Expression → includes "Right to Know."
- **Article 21:** Right to Life → includes right to information necessary for dignity.
- **Article 32 & 226:** Remedies for enforcement of RTI.
- **Judicial Recognition:** RTI = Fundamental Right.

## Significance of RTI in Democracy & Good Governance

- Makes administration **transparent and accountable**.
- Promotes **citizen participation**.
- Helps fight **corruption and misuse of power**.
- Improves **decision-making and trust** in government.

RTI = Tool of Empowerment + Essence of Good Governance.

## UNIT – II: RTI Act, 2005 – Structure, Institutions & Procedures

### 1 Salient Features of RTI Act, 2005

- Enacted: **15 June 2005**, effective **12 October 2005**.
- Applicable to: Whole of India (except J&K initially, later extended).
- **Objective:** To promote transparency and accountability in every public authority.
- **Total Sections:** 31
- **Total Chapters:** 6

### 2 Public Authorities (Sections 2(h), 4)

**Definition (Sec 2(h)):** Includes Government bodies, PSUs, NGOs substantially financed by govt.

**Duties (Sec 4):** Suo motu disclosure; maintain records; publish information; train officials.

**PIOs:** Every department must appoint Public Information Officer (PIO) and Assistant PIO.

### 3 Central & State Information Commissions

| Body                                        | Composition                      | Appointment Authority                           | Tenure                                                             |
|---------------------------------------------|----------------------------------|-------------------------------------------------|--------------------------------------------------------------------|
| <b>Central Information Commission (CIC)</b> | 1 Chief + up to 10 Commissioners | President on recommendation of PM-led Committee | As per RTI Amendment Act, 2019 – tenure & salary notified by Govt. |
| <b>State Information Commission (SIC)</b>   | 1 Chief + up to 10 Commissioners | Governor on recommendation of CM-led Committee  | As per RTI Amendment Act, 2019 – tenure & salary notified by Govt. |

**Functions:**

- Receive appeals/complaints.
- Direct disclosure of information.
- Impose penalties.
- Ensure compliance with Act.

### 4 Powers & Functions, Appeals & Penalties

| Power / Function                   | Provision / Nature                                                |
|------------------------------------|-------------------------------------------------------------------|
| <b>Powers of ICs (Sec.18–19)</b>   | Same as Civil Court: summon, examine witnesses, demand documents. |
| <b>First Appeal (Sec.19(1))</b>    | To senior officer within 30 days.                                 |
| <b>Second Appeal (Sec.19(3))</b>   | To Central/State Information Commission within 90 days.           |
| <b>Penalty (Sec.20)</b>            | ₹250/day up to ₹25,000 for delay, refusal, or false information.  |
| <b>Compensation (Sec.19(8)(b))</b> | For loss caused to applicant due to denial of information.        |

**RTI Amendment Act, 2019:**

- Removed fixed tenure (5 years) & salary equivalence to Election Commissioners.
- Empowered Central Govt. to decide tenure, salary, and service conditions.

## UNIT – III: RTI, Judiciary & Other Laws

### 1 RTI and Judicial Activism

- **Judiciary's Role:** Expanded RTI as a **fundamental right** through proactive judgments.
- **High Courts and Supreme Court** both use RTI to enhance transparency in governance.

#### Landmark Judgments:

- *State of U.P. v. Raj Narain* (1975) → Right to know is essential for democracy.
- *Union of India v. Association for Democratic Reforms* (2002) → Voters have right to know about candidates.
- *PUCL v. Union of India* (2004) → RTI part of freedom of speech.

#### RTI v. Judiciary:

- Judiciary itself is a “public authority” under RTI.
- But certain internal judicial communications are exempt under **Sec.8(1)(b) & (e)**.

### 2 RTI and Other Laws

#### (a) Information Technology Act, 2000

- Promotes **digital governance** and **electronic records**.
- RTI and IT Act both encourage **e-transparency** and **online access**.
- Section 6(1) RTI allows **electronic filing** of requests.

#### (b) Contempt of Courts Act, 1971

- RTI disclosure cannot violate **court confidentiality**.
- Under **Sec. 8(1)(b)** RTI Act → Information forbidden by courts or causing contempt cannot be disclosed.

#### (c) Acts related to Intellectual Property

- RTI cannot reveal **trade secrets / IP data** unless in public interest (Sec. 8(1)(d)).
- Balances *innovation rights* with *public transparency*.

#### (d) Bharatiya Nagrik Suraksha Sanhita, 2023

- RTI may be used to seek information about **criminal justice procedures**, FIRs, arrests, etc., but not where it affects **investigation or national security** (Sec. 8(1)(h)).

## UNIT – IV: Whistleblowers, Media & Secrecy Laws

### 1 Whistle Blowers Protection Act, 2014

**Objective** | To protect persons who expose corruption, misuse of power, or wrongdoing in public offices.

**Authority** | Central/State Vigilance Commissions.

**Protection** | From victimization, harassment, or disclosure of identity.

**Scope** | Applies to public servants and citizens reporting corruption.

**Penalty** | For false complaints or revealing identity – imprisonment up to 3 years.

**Relation with RTI** | RTI exposes corruption → WBP Act protects the exposers.

**Famous Cases** | Satyendra Dubey, Manjunath Shanmugam (led to demand for the law).

## 2 RTI – Emerging Trends: Media and RTI

| Role of Media | Effect |
|---------------|--------|
|---------------|--------|

|                    |                                        |
|--------------------|----------------------------------------|
| Awareness creation | Citizens learn to use RTI effectively. |
|--------------------|----------------------------------------|

|                          |                                   |
|--------------------------|-----------------------------------|
| Investigative journalism | Exposed scams (2G, Adarsh, etc.). |
|--------------------------|-----------------------------------|

|             |                                            |
|-------------|--------------------------------------------|
| Digital era | Online RTI portals, social media activism. |
|-------------|--------------------------------------------|

|                  |                                                                            |
|------------------|----------------------------------------------------------------------------|
| Judicial support | <i>Indian Express v. UOI (1985)</i> → Press freedom part of Art. 19(1)(a). |
|------------------|----------------------------------------------------------------------------|

|                 |                                                        |
|-----------------|--------------------------------------------------------|
| Good governance | Transparency + accountability + citizen participation. |
|-----------------|--------------------------------------------------------|

RTI gives citizens the **right to know**; Media gives them the **voice to speak**.

## 3 Official Secrets Act, 1923; Atomic Energy Act, 1962 & RTI

| Act                               | Purpose                                                 | Relation with RTI                                                   |
|-----------------------------------|---------------------------------------------------------|---------------------------------------------------------------------|
| <b>Official Secrets Act, 1923</b> | Protects national security, espionage prevention.       | RTI overrides OSA (Sec.22), but exemptions apply under Sec.8(1)(a). |
| <b>Atomic Energy Act, 1962</b>    | Regulates atomic energy; secrecy in nuclear matters.    | Sec.18–20 prohibit disclosure; exempt under RTI Sec.8(1)(a).        |
| <b>Judicial View</b>              | Secrecy must be justified ( <i>S.P. Gupta v. UOI</i> ). | RTI allows disclosure if public interest outweighs harm.            |

**Balance:** Transparency is rule → Secrecy only for national interest.

## CORE PRINCIPLES OF RTI LAW

| Principle | Meaning |
|-----------|---------|
|-----------|---------|

|                           |                                             |
|---------------------------|---------------------------------------------|
| <b>Maximum Disclosure</b> | Openness is the rule; secrecy is exception. |
|---------------------------|---------------------------------------------|

|                           |                                     |
|---------------------------|-------------------------------------|
| <b>Minimal Exemptions</b> | Limited grounds for denial (Sec.8). |
|---------------------------|-------------------------------------|

|                              |                                                    |
|------------------------------|----------------------------------------------------|
| <b>Obligation to Publish</b> | Suo motu disclosure by public authorities (Sec.4). |
|------------------------------|----------------------------------------------------|

|                        |                                                 |
|------------------------|-------------------------------------------------|
| <b>Right to Appeal</b> | Two-tier appeal system ensures remedy (Sec.19). |
|------------------------|-------------------------------------------------|

|                          |                                                             |
|--------------------------|-------------------------------------------------------------|
| <b>Penal Consequence</b> | Officers penalized for delay or false information (Sec.20). |
|--------------------------|-------------------------------------------------------------|

**Public Interest Override** Even exempt info can be disclosed if public interest demands (Sec.8(2)).

## LANDMARK JUDGMENTS

| Case | Principle Established |
|------|-----------------------|
|------|-----------------------|

|                                           |                                               |
|-------------------------------------------|-----------------------------------------------|
| <i>State of U.P. v. Raj Narain</i> (1975) | Right to know is a part of freedom of speech. |
|-------------------------------------------|-----------------------------------------------|

|                                            |                                                       |
|--------------------------------------------|-------------------------------------------------------|
| <i>S.P. Gupta v. Union of India</i> (1982) | Government cannot withhold info without valid reason. |
|--------------------------------------------|-------------------------------------------------------|

|                                      |                                  |
|--------------------------------------|----------------------------------|
| <i>PUCL v. Union of India</i> (2004) | RTI is part of Article 19(1)(a). |
|--------------------------------------|----------------------------------|

## Case

## Principle Established

*Union of India v. ADR* (2002)

Voter's right to know candidate details.

*CBSE v. Aditya Bandopadhyay* (2011) Limits of RTI – reasonable restrictions valid.

## Conclusion

- The **Right to Information Act, 2005** is a milestone in India's democratic journey.
- It transforms governance from **secrecy to transparency** and from **authority to accountability**.
- Supported by **Whistleblower laws, judiciary, and media**, it ensures that **citizens truly become the masters of democracy**.

✨ “Information is the currency of democracy – RTI is its strongest safeguard.”

—Abhishek Chaudhary